

CITY OF NEW ROCHELLE, NY

MINUTES OF CITY COUNCIL

Type: Regular Legislative Meeting
Date: Tuesday, October 18, 2022 at 6:15 P.M.
Place: 1St Floor Council Conference Room

PLEDGE OF ALLEGIANCE

ROLL CALL

Martha Lopez	District 1 Council Member - Present
Albert A. Tarantino Jr	District 2 Council Member - Present
Yadira Ramos Herbert	District 3 Council Member - Present
Ivar Hyden	District 4 Council Member - Present
Sara R. Kaye	District 5 Council Member - Present
Elizabeth M. Fried	District 6 Council Member - Present
Noam Bramson	Mayor - Present

The meeting was called to order at 6:15 PM by Mayor Noam Bramson

APPROVAL OF MINUTES: Regular Legislative Meeting, Tuesday, July 19, 2022; Committee of the Whole Session, Tuesday, September 13, 2022.

Unanimously approved.

SUBMISSION OF MINUTES: Regular Legislative Meeting, Tuesday, September 20, 2022; Committee of the Whole Session, Wednesday, October 12, 2022.

LEGISLATION IN VOTING ORDER

CONSENT AGENDA

1. **2022-145 - PROPOSED LEGISLATION RE: CIRCUIT SHUTTLE EXTENSION AGREEMENT FROM OCTOBER 31, 2022, THROUGH DECEMBER 31, 2022** - Resolution authorizing the City Manager to execute an extension of the contract with the Circuit for the period October 31, 2022 to December 31, 2022 in the amount of \$110,934.34.
2. **2022-146 - PROPOSED AUTHORIZATION TO EXECUTE LICENSE AGREEMENT WITH HUDSON PARK CHILDREN'S GREENHOUSE INC., RE: OPERATIONAL CONTROL OF GREENHOUSE FACILITY** - Resolution authorizing the City Manager to execute a license agreement with Hudson Park Children's Greenhouse, Inc., relative to the operational control of the Greenhouse Facility at Wildcliff Manor Property.

3. **2022-147** - PROPOSED AMENDMENT TO THE 2022 BUDGET RE: THIRD-QUARTER ADJUSTMENTS - Ordinance amending Ordinance No. 180 of 2021, the budget of the City of New Rochelle for 2022, relative to third quarter 2022 budget adjustments.
4. **2022-148** - PROPOSED AUTHORIZATION TO ACCEPT THE NEW YORK POWER AUTHORITY'S 2022 TREE POWER PROGRAM GRANT - Ordinance accepting the New York Power Authority's 2022 Tree Power Program matching grant of \$2,404, and amending Ordinance No. 180 of 2021, the Budget of the City of New Rochelle for 2022, and appropriating funds therefor (Public Works Department).
5. **2022-149** - PROPOSED AMENDMENT TO CODE OF THE CITY OF NEW ROCHELLE RE: PARKING REGULATION CHANGE - SIXTH STREET - Ordinance amending Section 312-84, Schedule XIII: Parking Prohibited Certain Hours, of Chapter 312, Vehicles and Traffic, of the Code of the City of New Rochelle (Sixth Street).
6. **2022-150** - PROPOSED AMENDMENT TO CODE OF THE CITY OF NEW ROCHELLE RE: PARKING REGULATION CHANGE - SEVENTH STREET - Ordinance amending Section 312-84, Schedule XIII: Parking Prohibited Certain Hours, of Chapter 312, Vehicles and Traffic, of the Code of the City of New Rochelle (Seventh Street).

RESOLUTIONS

7. **2022-151** - PROPOSED SETTLEMENT OF LAWSUIT RE: STATE FARM FIRE 7 CASUALTY COMPANY A/S/O AMIL EAPEN V CITY OF NEW ROCHELLE - INDEX NO. 66473/2020 - Resolution authorizing the settlement of the matter entitled State Farm Fire & Casualty Company a/s/o Amil Eapen v. City of New Rochelle, Supreme Court, Westchester County Index No. 66473/2020, in the amount of \$12,918.00.

Previously discussed in Executive Session.

RESULT:	ADOPTED [UNANIMOUS]
AYES:	Lopez, Tarantino Jr, Herbert, Hyden, Kaye, Fried, Bramson

8. **2022-152** - PROPOSED SETTLEMENT OF CLAIM OF JORGE SERAFIN - Resolution authorizing the settlement of the matter entitled "Claim of Jorge Serafin v. City of New Rochelle" in the amount of \$11,097.61.

Previously discussed in Executive Session.

RESULT:	ADOPTED [UNANIMOUS]
AYES:	Lopez, Tarantino Jr, Herbert, Hyden, Kaye, Fried, Bramson

9. **2022-153** - PROPOSED SETTLEMENT OF CLAIM OF RAUL SANTOS - Resolution authorizing the settlement of the matter entitled "Claim of Raul Santos v. City of New Rochelle" in the amount of \$9,225.91.

Previously discussed in Executive Session.

RESULT:	ADOPTED [UNANIMOUS]
AYES:	Lopez, Tarantino Jr, Herbert, Hyden, Kaye, Fried, Bramson

10. **2022-154 - PROPOSED PARTICIPATION IN COUNTY-FINANCED FIRE CONSOLIDATION STUDY** - Resolution approving participation in a study finance by the County of Westchester relative to consolidation of the New Rochelle, Larchmont, Pelham and Pelham Manor Fire Departments.

RESULT:	ADOPTED [UNANIMOUS]
AYES:	Lopez, Tarantino Jr, Herbert, Hyden, Kaye, Fried, Bramson

11. **LOCAL 663 STIPULATION OF AGREEMENT BETWEEN THE CITY OF NEW ROCHELLE (CITY) AND THE LOCAL 663, COUNTY AND MUNICIPAL COUNCIL 66 OF NEW YORK AFSCME, AFL-CIO** - Resolution ratifying the Stipulation of Agreement between the City of New Rochelle (City) and Local 663, County and Municipal Council 66 of New York AFSCME, AFL-CIO for the period January 1, 2021 through December 31, 2026.

Subject item was held pending the receipt of signatures required.

RESULT:	HELD [UNANIMOUS]
	Next: 11/7/2022 3:45 PM
AYES:	Lopez, Tarantino Jr, Herbert, Hyden, Kaye, Fried, Bramson

12. **PROPOSED AMERICAN RESCUE PLAN ACT (ARPA) GRANT AWARDS** - Resolution authorizing the disbursement of American Rescue Plan Act (ARPA) funding grant awards to eligible not-for-profit organizations.

Charles B. Strome, III, City Manager, provided an overview of the application process for not-for-profit organizations and small businesses eligible in the first tranche of the American Rescue Plan Act (ARPA) grant awards. He addressed the outreach efforts which included town hall meetings and community leader, as well as the process for reviewing applications received by the Director of Community Engagement. Those not-for-profit grant applications that were denied due to ineligibility (if portions of the applications were unacceptable) may be resubmitted in the second tranche. Few applicants received the total sum for which they applied. Some decisions were based on eligibility; and some applicants may be granted a partial amount and may reapply at a later date - to be carefully reviewed by the Federal Government. Not-for-profits can be continued in the second tranche. He said that certain Capital projects may be funded with ARPA money.

Additional information will be provided at a future date in order to permit further review by City Council.

Charles Curtis, Director of Community Engagement, explained the general application process. Questions and responses followed.

Subject item was held pending further review.

City Manager Strome stated that two Members of City Council (Council Members Tarantino and Hyden), owners of small businesses in the

Downtown area, will recuse themselves from discussions as they relate to small businesses.

Council Members Tarantino and Hyden recused themselves from the following discussion.

Rita Azrelyant, Assistant to the City Manager, addressed the eligibility of small businesses and specific instructions, as certain criteria must be met.

The loss of revenue during the pandemic years 2019 and 2020--financial impact--must be proven, and tax returns were required. Small businesses must prove financial hardship during Covid. Federal regulations apply, and the Federal Government determines eligibility. Certain items included in applications were ineligible for funding; and those businesses initially deemed ineligible in the first tranche may re-apply in the second tranche provided eligibility is proven.

Further information will be provided regarding specific applications.

Subject item was held pending further review.

Council Members Tarantino and Hyden rejoined the meeting.

RESULT:	HELD [UNANIMOUS]
	Next: 11/7/2022 3:45 PM
AYES:	Lopez, Tarantino Jr, Herbert, Hyden, Kaye, Fried, Bramson

13. **PROPOSED ARPA GRANT AWARDS** - Resolution authorizing the disbursement of American Rescue Plan Act (ARPA) funding grant awards for hazard pay to eligible small businesses.

See previous item.

Subject item was held pending further discussion.

RESULT:	HELD [UNANIMOUS]
	Next: 11/7/2022 3:45 PM
AYES:	Lopez, Tarantino Jr, Herbert, Hyden, Kaye, Fried, Bramson

ORDINANCES

14. **2022-155 - PROPOSED ACCEPTANCE OF NEW YORK STATE DEPARTMENT OF HOMELAND SECURITY AND EMERGENCY SERVICES TARGETED TACTICAL TEAM GRANT AWARD AND PROPOSED AMENDMENT TO 2022 BUDGET: RE: TARGETED TACTICAL TEAM GRANT AWARD** - Ordinance accepting New York State Department of Homeland Security and Emergency Services Targeted Tactical Team grant, amending Ordinance No. 180 of 2021, the budget of the City of New Rochelle for 2022, and appropriating funds therefor (New Rochelle Police Department).

RESULT:	ADOPTED [UNANIMOUS]
AYES:	Lopez, Tarantino Jr, Herbert, Hyden, Kaye, Fried, Bramson

15. **2022-156 - PROPOSED ACCEPTANCE OF BULLETPROOF VEST PARTNERSHIP ACT GRANT; AND PROPOSED AMENDMENT TO 2022 BUDGET** - Ordinance accepting the Justice Department's Bulletproof Vest Partnership Act Grant, amending Ordinance No. 180 of 2021, the Budget of the City of New Rochelle for 2022, and appropriating funds therefor (New Rochelle Police Department Bulletproof Vest Program).

RESULT:	ADOPTED [UNANIMOUS]
AYES:	Lopez, Tarantino Jr, Herbert, Hyden, Kaye, Fried, Bramson

FOR INTRODUCTION ONLY: (PROPOSED AMENDMENT)

16. **2022-157 - LEAD AGENCY STATUS RE: PROPOSED AMENDMENT TO ZONING CODE, CHAPTER 331, SECTION 331-27.1, WATERFRONT ACCESS ; AND PROPOSED AMENDMENT TO CHAPTER 133, FEES** - Resolution declaring lead agency status relative to the proposed ordinance adding Section 331-27.1, Waterfront Access, and amending Section 133-1, Enumeration of Fees, of Chapter 133, Fees, of the Code of the City of New Rochelle.

Public Hearing relative to proposed amendment to Chapter 331, Zoning Code, is scheduled for Monday, November 7, 2022, at 7:00 P.M.

RESULT:	ADOPTED [UNANIMOUS]
AYES:	Lopez, Tarantino Jr, Herbert, Hyden, Kaye, Fried, Bramson

17. **PROPOSED AMENDMENT TO CHAPTER 331, SECTION 331-27.1, ZONING CODE, AND CHAPTER 133, FEES RE: WATERFRONT ACCESS FUND** - Ordinance adding Section 331-27.1, Zoning Code, Waterfront Access, and amending Section 133-1, Enumeration of Fees, of the Code of the City of New Rochelle. (Intro. 10/18/22; Public Hearing).

Adam Salgado, Commissioner of Development, explained the intent of the proposed amendment to increase the scope of projects for which the fee would apply and used for the funding of waterfront public access amenities.

Public Hearing relative to proposed amendment to Chapter 331, Zoning Code, is scheduled for Monday, November 7, 2022, at 7:00 P.M.

RESULT:	HELD [UNANIMOUS]
	Next: 11/7/2022 3:45 PM
AYES:	Lopez, Tarantino Jr, Herbert, Hyden, Kaye, Fried, Bramson

18. **2022-158 - DIRECTING PUBLIC HEARING RE: PROPOSED AMENDMENT TO CHAPTER 331,SECTION 331-27.1, ZONING CODE, RE: WATERFRONT ACCESS** - Resolution scheduling a public hearing relative to the proposed ordinance adding Section 331-27.1, Waterfront Access, and amending Section 133-1, Enumeration of Fees, of Chapter 133, Fees, of the Code of the City of New Rochelle.

Public Hearing relative to proposed amendment to Chapter 331, Zoning Code, is scheduled for Monday, November 7, 2022, at 7:00 P.M.

RESULT:	ADOPTED [UNANIMOUS]
AYES:	Lopez, Tarantino Jr, Herbert, Hyden, Kaye, Fried, Bramson

ADDED ITEM

19. **2022-159 - AMEND CONTRACT WITH NY LANDSCAPE LIGHTING RE: HOLIDAY LIGHTS PROGRAM & AMEND 180 OF 2021** Ordinance amending the contract with New York Landscape Lighting relative to the City's Holiday Lights Program and amending Ordinance No. 180 of 2021, the budget of the City of New Rochelle for 2022.

RESULT:	ADOPTED [UNANIMOUS]
AYES:	Lopez, Tarantino Jr, Herbert, Hyden, Kaye, Fried, Bramson

DISCUSSION ITEM(S):

20. **COMMERCIAL VEHICLES PARKED IN RESIDENTIAL AREAS** - Requested by Council Member Albert A. Tarantino, Jr.

Council Member Albert A. Tarantino, Jr., addressed the problem of commercial vehicles parked in residential areas in the South End. Those vehicles include commercial buses, trucks and taxicabs parked throughout the southern portions of the City, including Echo Avenue--some of which are due to Downtown development--the Trinity School area, and the Church Street extension.

City Manager Strome stated that the matter will be addressed.

PUBLIC HEARING: None.

EXECUTIVE SESSION:

Unanimously moved and seconded by Council Members Lopez, Tarantoni, Ramos-Herbert, Hyden, Kaye, Fried, and Mayor Noam Bramson, and approved. Subject(s): two matters of real estate, one matter of collective bargaining.

ADJOURNMENT

The meeting was adjourned at 7:20 P.M.

Michelle Oliveros, City Clerk

City of New Rochelle
Development

MEMORANDUM

TO: Honorable Mayor and City Council

THRU: Charles B. Strome, III, City Manager

FROM: Adam Salgado, Commissioner of Development

DATE: October 18, 2022

SUBJECT: PROPOSED LEGISLATION RE: CIRCUIT SHUTTLE EXTENSION AGREEMENT FROM OCTOBER 31, 2022, THROUGH DECEMBER 31, 2022 - Resolution authorizing the City Manager to execute an extension of the contract with the Circuit for the period October 31, 2022 to December 31, 2022 in the amount of \$110,934.34.

INTRODUCTION

Originally, CircuitNR was intended to circulate residents around the Downtown to facilitate last-mile transport to and from the train station and other services. In 2020, with the onset of COVID, the City funded CircuitNR with Cares Act funds to facilitate access for the City's most vulnerable population - the elderly, the disabled and low-income individuals and families to testing sites and vaccine appointments. The expansion increased from three (3) to six (6) vehicles and service was expanded to transport residents to and from Covid related services as well as medical appointments and essential services such as pharmacies and supermarkets throughout the City. Starting September 6th, they initiated a pilot service to Parkside Place Apartments. These funds will enable the City to continue the service through December 2022.

RECOMMENDATION

The Department of Development is requesting the City Council authorize the City Manager to execute an extension of the contract with the Circuit for the period October 31, 2022 to December 31, 2022 in the amount of \$110,934.34. The funding should be charged to account: CD19-41707-2708.

LEGISLATION

RESOLUTION AUTHORIZING THE CITY MANAGER TO EXECUTE AN EXTENSION OF THE CONTRACT WITH THE CIRCUIT FOR THE PERIOD OCTOBER 31, 2022 TO DECEMBER 31, 2022 IN THE AMOUNT OF \$110,934.34.

WHEREAS, CircuitNR was originally intended to circulate residents around the Downtown to facilitate last-mile transport to and from the train station and other services; and

WHEREAS, with the onset of COVID in 2020, the City funded CircuitNR with CARES Act funds to facilitate access for the City's most vulnerable population - the elderly, the disabled and low-income individuals and families to testing sites and vaccine appointments; and

WHEREAS, the expansion increased from three (3) to six (6) vehicles and service was expanded to transport residents to and from Covid related services as well as medical appointments and essential services such as pharmacies and supermarkets throughout the City; and

WHEREAS, beginning September 6, 2022, a pilot service was initiated to Parkside Place Apartments, and these funds will enable the City to continue the service through December 2022; now, therefore

BE IT RESOLVED, the City Manager is hereby authorized to execute an extension of the contract with the Circuit for the period October 31, 2022 to December 31, 2022 in the amount of \$110,934.34; and be it further

RESOLVED, that the funding shall be charged to account CD19-41707-2708.

City of New Rochelle
Law

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Kathleen E. Gill, Corporation Counsel/Deputy City Manager
DATE: October 18, 2022
SUBJECT: PROPOSED AUTHORIZATION TO EXECUTE LICENSE AGREEMENT
WITH HUDSON PARK CHILDREN'S GREENHOUSE INC., RE:
OPERATIONAL CONTROL OF GREENHOUSE FACILITY - Resolution
authorizing the City Manager to execute a license agreement with Hudson Park
Children's Greenhouse, Inc., relative to the operational control of the Greenhouse
Facility at Wildcliff Manor Property.

Resolution authorizing the City Manager to execute a license agreement with Hudson Park
Children's Greenhouse, Inc. relative to the Greenhouse Facility at Wildcliff Manor property

LEGISLATION

RESOLUTION AUTHORIZING THE CITY MANAGER TO EXECUTE A LICENSE AGREEMENT WITH HUDSON PARK CHILDREN'S GREENHOUSE, INC., RELATIVE TO THE OPERATIONAL CONTROL OF THE GREENHOUSE FACILITY AT WILDCLIFF MANOR PROPERTY.

WHEREAS, the City intends to construct a new sustainable greenhouse consisting of two greenhouse wings, offices, a lobby and storage in Hudson Park (the "Greenhouse Facility"); and

WHEREAS, the Hudson Park Children's Greenhouse, Inc. (HPCG) is desirous of obtaining operational control over the Greenhouse Facility for the purpose of managing year-round programs and activities geared toward young children to be offered at the Greenhouse Facility; and

WHEREAS, the HPCG has commenced public fundraising for the purpose of establishing an endowment or other source of funds to sustain the operation of the new Greenhouse Facility; now, therefore

BE IT RESOLVED, that the City Council is amenable to the grant of operational control over the Greenhouse Facility to the HPCG entity; and be it further

RESOLVED, that the City Manager is authorized to execute a license agreement with Hudson Park Children's Greenhouse, Inc., under the terms and conditions agreeable to the City Manager and approved by the Corporation Counsel/Deputy City Manager.

City of New Rochelle
Finance Department

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Edward Ritter, Finance Commissioner
DATE: October 18, 2022
SUBJECT: PROPOSED AMENDMENT TO THE 2022 BUDGET RE: THIRD-QUARTER
ADJUSTMENTS - Ordinance amending Ordinance No. 180 of 2021, the budget
of the City of New Rochelle for 2022, relative to third quarter 2022 budget
adjustments.

It is recommended that the 2022 adopted budget be amended for the following items in accordance with City Code Chapter 75-1:

The following program budgets require budget amendments/transfers as follows:

1. Finance Department:

- A) Sales Tax -Third-quarter adjustment to reflect increased Sales Tax revenue, increasing both revenue and fund balance
- B) Finance - Third-quarter adjustment to account for hourly and overtime costs through salary savings
- C) Tax Office - Third-quarter adjustment to reflect increased tax Certiorari and SCAR settlements.

2. City Clerk's Office:

Third-quarter adjustment to account for increase costs in contractual services through Fund Balance appropriation.

3. Law Department:

Third-quarter adjustment to account for increase costs in contractual services through Fund Balance appropriation.

4. Public Works:

A) Engineering:

Third-quarter adjustment to account for increase costs in contractual services for construction mark-outs through Fund Balance appropriation.

B) Facilities:

Third-quarter adjustment to account for increased rent costs for the City's new facility through Fund Balance appropriation.

C) Snow:

Third-quarter adjustment to account for additional contracting for snow removal through Fund Balance appropriation.

5. Building Department:

Third-quarter adjustment to reflect increased building/alteration permit revenue, increasing both revenue and fund balance

6. Development

Third -quarter adjustment for 2021 grant funds to be carried forward into 2022 from fund balance

7. Parks & Recreation

Youth Nutrition: Third-quarter adjustment to account for increased youth meals provided and a matching increase to revenue reimbursement.

LEGISLATION

ORDINANCE AMENDING ORDINANCE NO. 180 OF 2021,
THE BUDGET OF THE CITY OF NEW ROCHELLE FOR
2022, RELATIVE TO THIRD QUARTER 2022 BUDGET
ADJUSTMENTS.

BE IT ORDAINED by the City of New Rochelle:

Section 1. Ordinance No. 180 of 2021, the Budget of the City of New Rochelle for 2022, is hereby amended relative to third quarter 2022 budget adjustments, as follows in accordance with City Code Chapter 75-1:

1. Finance Department

- A) Sales Tax -Third-quarter adjustment to reflect increased Sales Tax revenue, increasing both revenue and fund balance
- B) Finance - Third-quarter adjustment to account for hourly and overtime costs through salary savings
- C) Tax Office - Third-quarter adjustment to reflect increased tax Certiorari and SCAR settlements.

2. City Clerk's Office

Third-quarter adjustment to account for increase costs in contractual services through Fund Balance appropriation.

3. Law Department

Third-quarter adjustment to account for increase costs in contractual services through Fund Balance appropriation.

4. Public Works:

A) Engineering:

Third-quarter adjustment to account for increase costs in contractual services for construction mark-outs through Fund Balance appropriation.

B) Facilities:

Third-quarter adjustment to account for increased rent costs for the City's new facility through Fund Balance appropriation.

C) Snow:

Third-quarter adjustment to account for additional contracting for snow removal through Fund Balance appropriation.

5. Building Department:

Third-quarter adjustment to reflect increased building/alteration permit revenue, increasing both revenue and fund balance.

6. Development

Third-quarter adjustment for 2021 grant funds to be carried forward into 2022 from fund balance.

7. Parks & Recreation

Youth Nutrition: Third-quarter adjustment to account for increased youth meals provided and a matching increase to revenue reimbursement.

ATTACHMENTS:

1. Third quarter budget adjustment 2022

2022 THIRD QUARTER BUDGET ADJUSTMENTS					
1	FINANCE DEPARTMENT				
	A) Sales Tax Revenue				
	Increase Revenue				
	REVENUE	1310	1110	SALES TAX	(2,000,000)
	REVENUE	A	599	APPROPRIATED FUND BALANCE	2,000,000
	B Finance:				
	Increase/(Decrease) Appropriations				
	EXPENSE	1310	11000	SALARIES - FULL TIME	(70,000)
	EXPENSE	1310	11500	SALARIES- FT OTHER	30,000
	EXPENSE	1310	13000	SALARIES- HOURLY RATES	25,000
	EXPENSE	1310	14000	SALARIES- OVERTIME	15,000
	C) Tax:				
	Increase/(Decrease) Appropriations				
	EXPENSE	1330	49700	TAX CERTIORARI	120,000
	REVENUE	A	599	APPROPRIATED FUND BALANCE	(120,000)
2	CITY CLERK'S OFFICE				
	Increase/(Decrease) Appropriations				
	EXPENSE	1410	46300	CONTRACTUAL ETHICS COMMISSION	40,000
	REVENUE	A	599	APPROPRIATED FUND BALANCE	(40,000)
3	LAW DEPARTMENT:				
	Increase/(Decrease) Appropriations				
	EXPENSE	1420	46000	CONTRACTED SVCS	200,000
	REVENUE	A	599	APPROPRIATED FUND BALANCE	(200,000)
4	PUBLIC WORKS:				
	Engineering				
	Increase/(Decrease) Appropriations				
	A) EXPENSE	1440	46000	CONTRACTED SVCS-MARKOUTS	100,000
	REVENUE	A	599	APPROPRIATED FUND BALANCE	(100,000)
	Facilities:				
	Increase/(Decrease) Appropriations				
	B) EXPENSE	1500	44000	RENT	400,000
	REVENUE	A	599	APPROPRIATED FUND BALANCE	(400,000)
	Snow:				
	Increase/(Decrease) Appropriations				
	C) EXPENSE	5142	46000	CONTRACTED SVCS	150,000
	REVENUE	A	599	APPROPRIATED FUND BALANCE	(150,000)
5	BUILDING DEPARTMENT				
	Increase Revenue				
	REVENUE	1620	2555	PERMITS/ALTERATIONS - BUILDINGS	(585,000)
	REVENUE	A	599	APPROPRIATED FUND BALANCE	585,000
6	DEVELOPMENT:				
	Increase/(Decrease) Appropriations				
	EXPENSE	6989	46000	6005 CONTRACTED SVCS	246,657
		A	599	APPROPRIATED FUND BALANCE	(246,657)
7	PARKS & RECREATION:				
	Youth Nutrition:				
	Increase/(Decrease) Appropriations				
	EXPENSE	7380	46000	Youth Nutrition	91,714
	REVENUE	7380	4820	Youth Nutrition - NYS REIMBURSE	(91,714)

City of New Rochelle
Public Works

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Jim Moran, Public Works Commissioner
DATE: October 18, 2022
SUBJECT: PROPOSED AUTHORIZATION TO ACCEPT THE NEW YORK POWER AUTHORITY’S 2022 TREE POWER PROGRAM GRANT - Ordinance accepting the New York Power Authority’s 2022 Tree Power Program matching grant of \$2,404, and amending Ordinance No. 180 of 2021, the Budget of the City of New Rochelle for 2022, and appropriating funds therefor (Public Works Department).

THE DEPARTMENT HAS BEEN AWARDED \$2,404 FROM THE NEW YORK POWER AUTHORITY. THE FUNDING IS TO BE ALLOCATED FOR THE PURCHASE OF TREE FROM THE 2022 TREE POWER PROGRAM, A MATCHING GRANT OPPORTUNITY.

IT IS RECOMMENDED THAT COUNCIL ACCEPT AND APPROPRIATE THIS FUNDING FOR THIS PURPOSE.

Section 2. Ordinance No. 180 of 2021, the budget of the City of New Rochelle for 2022, is hereby amended as follows:

Increase Revenue:

8730-3897	Grants	\$2,404
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Increase Appropriations

8730-46000-1127	Tree Planting	\$2,404
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LEGISLATION

ORDINANCE ACCEPTING THE NEW YORK POWER AUTHORITY'S 2022 TREE POWER PROGRAM MATCHING GRANT IN THE AMOUNT OF \$2,404, AMENDING ORDINANCE NO. 180 OF 2021, THE BUDGET OF THE CITY OF NEW ROCHELLE FOR 2022, AND APPROPRIATING FUNDS THEREFOR (DEPARTMENT OF PUBLIC WORKS).

WHEREAS, the Department of Public Works has been awarded a grant in the amount of \$2,404 from the New York Power Authority to be allocated for the purchase of trees from the 2022 tree power program, a matching grant opportunity; now, therefore

BE IT ORDAINED by the City of New Rochelle:

Section 1. The Council of the City of New Rochelle hereby accepts the New York Power Authority's 2022 Tree Power Program matching grant in the amount of \$2,404.

Section 2. Ordinance No. 180 of 2021, the Budget of the City of New Rochelle for 2022, is hereby amended in order to provide for the acceptance and implementation of this grant, as follows:

Increase Estimated Revenues - General Fund:

8730 46000 1127	Contracted Svs - Tree Planting	\$2,404
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Increase Appropriations - General Fund:

8730 46000 1127	Contracted Svs - Tree Planting	\$2,404
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Section 3. The City Manager is hereby authorized to execute documentation as may be necessary and required to file and accept the \$2,404 grant.

City of New Rochelle
Public Works

MEMORANDUM

TO: Honorable Mayor and City Council

THRU: Charles B. Strome, III, City Manager

FROM: Jim Moran, Public Works Commissioner

DATE: October 18, 2022

SUBJECT: PROPOSED AMENDMENT TO CODE OF THE CITY OF NEW ROCHELLE
RE: PARKING REGULATION CHANGE - SIXTH STREET - Ordinance
amending Section 312-84, Schedule XIII: Parking Prohibited Certain Hours, of
Chapter 312, Vehicles and Traffic, of the Code of the City of New Rochelle
(Sixth Street).

Street sweeping operations by the Department of Public Works on Sixth Street between Union Avenue and the dead end have been hindered by vehicles parked at the end of the street that prevent the street sweeper from turning properly. To provide adequate space for turning while preserving as much neighborhood street parking as possible, it is recommended to remove one additional parking space from the opposite side of the street during alternate side street sweeping operations. The following change to the municipal code is recommended:

Matter [bracketed] deleted.

Matter underlined added.

§ 312-84 Schedule XIII: Parking Prohibited Certain Hours.

[Last amended 11-16-2004 by Ord. No. 250-2004[1]]

In accordance with the provisions of § 312-40, no person shall park a vehicle between the hours listed upon any of the following described streets or parts of streets subject to winter suspension of alternate side of street sweeping parking regulations as denoted by an asterisk (*) herein:

Name of Street	Side	Hours/ Days	Location
[Sixth Street*]	[East]	[8:00 a.m. to 12:00 noon/Monday]	[From Lafayette Avenue to Washington Avenue]
[Sixth Street*]	[East]	[8:00 a.m. to 12:00 noon/Tuesday]	[From Lafayette Avenue to Washington Avenue]

<u>Sixth Street*</u>	<u>East</u>	<u>8:00 a.m. to 12:00 noon/Monday</u>	<u>From Washington Avenue to</u> <u>Dead End</u>
<u>Sixth Street*</u>	<u>West</u>	<u>8:00 a.m. to 12:00 noon/Monday</u>	<u>From Dead End for 30 Feet</u>
<u>Sixth Street*</u>	<u>West</u>	<u>8:00 a.m. to 12:00 noon/Tuesday</u>	<u>From Washington Avenue to</u> <u>Dead End</u>
<u>Sixth Street*</u>	<u>East</u>	<u>8:00 a.m. to 12:00 noon/Tuesday</u>	<u>From Dead End for 30 Feet</u>

LEGISLATION

ORDINANCE AMENDING SECTION 312-84, SCHEDULE XIII: PARKING PROHIBITED CERTAIN HOURS, OF CHAPTER 312, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF NEW ROCHELLE (SIXTH STREET).

BE IT ORDAINED by the City of New Rochelle:

Section 1. The Code of the City of New Rochelle, Section 312-84, Schedule XIII: Parking Prohibited Certain Hours, of Chapter 312, Vehicles and Traffic, is hereby amended as follows:

§ 312-84. Schedule XIII: Parking Prohibited Certain Hours.

In accordance with the provisions of § 312-40, no person shall park a vehicle between the hours listed upon any of the following described streets or parts of streets subject to winter suspension of alternate side of street sweeping parking regulations as denoted by an asterisk (*) herein:

Name of Street	Side	Hours/Days	Location
[Sixth Street*]	[East]	[8:00 a.m. to 12:00 noon/Monday]	[From Lafayette Avenue to Washington Avenue]
[Sixth Street*]	[East]	[8:00 a.m. to 12:00 noon/Tuesday]	[From Lafayette Avenue to Washington Avenue]
<u>Sixth Street*</u>	<u>East</u>	<u>8:00 a.m. to 12:00 noon/Monday</u>	<u>From Washington Avenue to Dead End</u>
<u>Sixth Street*</u>	<u>West</u>	<u>8:00 a.m. to 12:00 noon/Monday</u>	<u>From Dead End for 30 Feet</u>
<u>Sixth Street*</u>	<u>West</u>	<u>8:00 a.m. to 12:00 noon/Tuesday</u>	<u>From Washington Avenue to Dead End</u>
<u>Sixth Street*</u>	<u>East</u>	<u>8:00 a.m. to 12:00 noon/Tuesday</u>	<u>From Dead End for 30 Feet</u>

Matter [bracketed] deleted.

Matter underlined added.

City of New Rochelle
Public Works

MEMORANDUM

TO: Honorable Mayor and City Council

THRU: Charles B. Strome, III, City Manager

FROM: Jim Moran, Public Works Commissioner

DATE: October 18, 2022

SUBJECT: PROPOSED AMENDMENT TO CODE OF THE CITY OF NEW ROCHELLE
RE: PARKING REGULATION CHANGE - SEVENTH STREET - Ordinance
amending Section 312-84, Schedule XIII: Parking Prohibited Certain Hours, of
Chapter 312, Vehicles and Traffic, of the Code of the City of New Rochelle
(Seventh Street).

Seventh Street operates one-way in the northbound direction. Additional street parking was added earlier this year on the east side of Seventh Street adjacent to Feeney Park at the request of School District officials, teachers, and some local residents. Some residents of the street have requested that overnight parking be restricted in this area due to illicit activities near the park. The Department of Public Works therefore has no objection to this change to the municipal code:

Matter [bracketed] deleted.

Matter underlined added.

§ 312-84 Schedule XIII: Parking Prohibited Certain Hours.

[Last amended 11-16-2004 by Ord. No. 250-2004[1]]

In accordance with the provisions of § 312-40, no person shall park a vehicle between the hours listed upon any of the following described streets or parts of streets subject to winter suspension of alternate side of street sweeping parking regulations as denoted by an asterisk (*) herein:

Name of Street	Side	Hours/ Days	Location
Seventh Street*	East	8:00 a.m. to 12:00 noon/Monday	From Union Avenue to Storer Avenue
<u>Seventh Street</u> <u>Avenue to</u>	<u>East</u>	<u>6:00 p.m. to 7:00 a.m./All Days</u>	<u>From Washington</u> <u>Storer Avenue</u>

LEGISLATION

ORDINANCE AMENDING SECTION 312-84, SCHEDULE XIII: PARKING PROHIBITED CERTAIN HOURS, OF CHAPTER 312, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF NEW ROCHELLE (SEVENTH STREET).

BE IT ORDAINED by the City of New Rochelle:

Section 1. The Code of the City of New Rochelle, Section 312-84, Schedule XIII: Parking Prohibited Certain Hours, of Chapter 312, Vehicles and Traffic, is hereby amended as follows:

§ 312-84. Schedule XIII: Parking Prohibited Certain Hours.

In accordance with the provisions of § 312-40, no person shall park a vehicle between the hours listed upon any of the following described streets or parts of streets subject to winter suspension of alternate side of street sweeping parking regulations as denoted by an asterisk (*) herein:

Name of Street	Side	Hours/Days	Location
Seventh Street*	East	8:00 a.m. to 12:00 noon/Monday	From Union Avenue to Storer Avenue
<u>Seventh Street</u>	<u>East</u>	<u>6:00 p.m. to 7:00 a.m./All Days</u>	<u>From Washington Avenue to Storer Avenue</u>

Matter underlined added.

City of New Rochelle
Law

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Kathleen E. Gill, Corporation Counsel/Deputy City Manager
DATE: October 18, 2022
SUBJECT: PROPOSED SETTLEMENT OF LAWSUIT RE: STATE FARM FIRE 7
CASUALTY COMPANY A/S/O AMIL EAPEN V CITY OF NEW ROCHELLE
- INDEX NO. 66473/2020 - Resolution authorizing the settlement of the matter
entitled State Farm Fire & Casualty Company a/s/o Amil Eapen v. City of New
Rochelle, Supreme Court, Westchester County Index No. 66473/2020, in the
amount of \$12,918.00.

Resolution authorizing the settlement of the matter entitled State Farm Fire & Casualty Company
a/s/o Amil Eapen v. City of New Rochelle, Supreme Court, Westchester County Index No.
66473/2020, in the amount of \$12,918.00.

LEGISLATION

RESOLUTION AUTHORIZING THE SETTLEMENT OF THE
MATTER ENTITLED STATE FARM FIRE & CASUALTY
COMPANY a/s/o AMIL EAPEN v. CITY OF NEW ROCHELLE,
SUPREME COURT, WESTCHESTER COUNTY INDEX NO.
66473/2020, IN THE AMOUNT OF \$12,918.00.

BE IT RESOLVED, by the Council of the City of New Rochelle, that this City Council hereby authorizes the settlement of the matter entitled State Farm Fire & Casualty Company a/s/o Amil Eapen v. City of New Rochelle, Westchester County Index No. 66473/2020, in the amount of \$12,918.00.

City of New Rochelle
Law

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Kathleen E. Gill, Corporation Counsel/Deputy City Manager
DATE: October 18, 2022
SUBJECT: PROPOSED SETTLEMENT OF CLAIM OF JORGE SERAFIN - Resolution
authorizing the settlement of the matter entitled "Claim of Jorge Serafin v. City of
New Rochelle" in the amount of \$11,097.61.

Resolution authorizing the settlement of the matter entitled "Claim of Jorge Serafin v. City of
New Rochelle" in the amount of \$11,097.61.

LEGISLATION

RESOLUTION AUTHORIZING THE SETTLEMENT OF THE
MATTER ENTITLED “CLAIM OF JORGE SERAFIN v. CITY OF
NEW ROCHELLE” IN THE AMOUNT OF \$11,097.61.

BE IT RESOLVED, by the Council of the City of New Rochelle, that this City Council hereby authorizes the settlement of the matter entitled “Claim of Jorge Serafin v. City of New Rochelle” in the amount of \$11,097.61.

City of New Rochelle
Law

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Kathleen E. Gill, Corporation Counsel/Deputy City Manager
DATE: October 18, 2022
SUBJECT: PROPOSED SETTLEMENT OF CLAIM OF RAUL SANTOS - Resolution
authorizing the settlement of the matter entitled "Claim of Raul Santos v. City of
New Rochelle" in the amount of \$9,225.91.

Resolution authorizing the settlement of the matter entitled "Claim of Raul Santos v. City of
New Rochelle" in the amount of \$9,225.91.

LEGISLATION

RESOLUTION AUTHORIZING THE SETTLEMENT OF THE
MATTER ENTITLED “CLAIM OF RAUL SANTOS v. CITY OF
NEW ROCHELLE” IN THE AMOUNT OF \$9,225.91.

BE IT RESOLVED, by the Council of the City of New Rochelle, that this City Council hereby authorizes the settlement of the matter entitled “Claim of Raul Santos v. City of New Rochelle” in the amount of \$9,225.91.

City of New Rochelle
Fire Department

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Andrew Sandor, Fire Commissioner
DATE: October 18, 2022
SUBJECT: PROPOSED PARTICIPATION IN COUNTY-FINANCED FIRE
CONSOLIDATION STUDY - Resolution approving participation in a study
finance by the County of Westchester relative to consolidation of the New
Rochelle, Larchmont, Pelham and Pelham Manor Fire Departments.

The City of New Rochelle agrees to participate in a study financed by the County of Westchester regarding consolidation of the New Rochelle, Larchmont, Pelham, and Pelham Manor Fire Departments. The goal of the study is to seek ways to provide these emergency services in a more financially sound way that shares existing resources, and is safer for firefighting personnel and the communities they serve. The County would request that the consultant provide alternative proposals for consideration and not be locked into one concept.

It is understood that by agreeing to be part of the County-financed study and provide information as requested, the City of New Rochelle (or its Fire Department) is not bound to follow any recommendations made by the study in any way.

LEGISLATION

RESOLUTION APPROVING PARTICIPATION IN A STUDY FINANCED BY THE COUNTY OF WESTCHESTER RELATIVE TO CONSOLIDATION OF THE NEW ROCHELLE, LARCHMONT, PELHAM AND PELHAM MANOR FIRE DEPARTMENTS.

WHEREAS, the City of New Rochelle has agreed to participate in a study financed by the County of Westchester regarding consolidation of the New Rochelle, Larchmont, Pelham, and Pelham Manor Fire Departments; and

WHEREAS, the goal of the study is to seek ways to provide these emergency services in a more financially sound way that shares existing resources and is safer for firefighting personnel and the communities they serve; and

WHEREAS, Westchester County shall request that the consultant provide alternative proposals for consideration and not be confined to one concept; and

WHEREAS, agreeing to be part of the County-financed study and providing information as requested shall not compel the City of New Rochelle or the City of New Rochelle Fire Department to follow any recommendations made by the study in any way; now, therefore

BE IT RESOLVED, that the City of New Rochelle agrees to participate in a study financed by the County of Westchester relative to consolidation of the New Rochelle, Larchmont, Pelham and Pelham Manor Fire Departments.

City of New Rochelle
Personnel

MEMORANDUM

TO: Honorable Mayor and City Council

THRU: Charles B. Strome, III, City Manager

FROM: Robert Yamuder, Human Resources Commissioner

DATE: October 18, 2022

SUBJECT: LOCAL 663 STIPULATION OF AGREEMENT BETWEEN THE CITY OF NEW ROCHELLE (CITY) AND THE LOCAL 663, COUNTY AND MUNICIPAL COUNCIL 66 OF NEW YORK AFSCME, AFL-CIO - Resolution ratifying the Stipulation of Agreement between the City of New Rochelle (City) and Local 663, County and Municipal Council 66 of New York AFSCME, AFL-CIO for the period January 1, 2021 through December 31, 2026.

The City Collective Bargaining Team has negotiated a Stipulation of Agreement (**forthcoming**) with Local 663 covering the period of January 1, 2021 through December 31, 2026. The membership of the Local 663 has approved the subject Stipulation.

The agreed upon provisions listed in the Memorandum of Agreement include:

1) Increased Salaries as follows:

Effective 1/1/21, increase annual salaries by 1.75%
 Effective 1/1/22, increase annual salaries by 2.0%,
 Effective 1/1/23, increase annual salaries by 2.0%,
 Effective 1/1/24, increase annual salaries by 3.0%
 Effective 1/1/25, increase annual salaries by 3.0%
 Effective 1/1/26, increase annual salaries by 3.0%

2) Increased Longevity as follows:

Year	After 5 years	After 10	After 15	(new) After 20
2023	\$1,200	\$1,400	\$2,100	\$3,000
2024	\$1,300	\$1,500	\$2,300	\$3,300
2025	\$1,400	\$1,600	\$2,500	\$3,600
2026	\$1,500	\$1,700	\$2,600	\$3,900

3) Increased Benefit (Welfare) Fund contributions as follows:

Effective 1/1/21: \$1,550

Effective 1/1/22: \$1,600

Effective 1/1/23: \$1,650

Effective 1/1/24: \$1,700

Effective 1/1/25: \$1,750

Effective 1/1/26: \$1,800

4) Clarification to various sections.

I recommend the City Council:

- 1) Ratify the attached Stipulation of Agreement; and
- 2) Transfer sufficient funds from various City Budget accounts to the specific services accounts in the Local 663.

LEGISLATION

RESOLUTION RATIFYING THE STIPULATION OF AGREEMENT BETWEEN THE CITY OF NEW ROCHELLE (CITY) AND THE LOCAL 663, COUNTY AND MUNICIPAL COUNCIL 66 OF NEW YORK AFSCME, AFL-CIO, FOR THE PERIOD JANUARY 1, 2021 THROUGH DECEMBER 31, 2026.

WHEREAS, the City Collective Bargaining Team has negotiated a Stipulation of Agreement with Local 663, County and Municipal Council 66 of New York AFSCME, AFL-CIO, covering the period of January 1, 2021 through December 31, 2026; now, therefore

BE IT RESOLVED by the Council of the City of New Rochelle:

Section 1. The Memorandum of Agreement between the City of New Rochelle and Local 663, County and Municipal Council 66 of New York AFSCME, AFL-CIO for the period January 1, 2021 through December 31, 2026 is hereby ratified and the City Manager is authorized to enter into an agreement pursuant thereto.

Section 2. In order to accomplish the foregoing, funds shall be transferred from the Salary Reserve Account.

ATTACHMENTS:

1. MOA Local 663 2021-26 100622 draft

MEMORANDUM OF AGREEMENT

Memorandum of Agreement by and between the City of New Rochelle (the “City”) and Local 663, County and Municipal Council 66 of New York AFSCME, AFL-CIO (the “Union”), dated this ____ day of October, 2022.

WHEREAS, the parties have engaged in negotiations in good faith in an effort to arrive at a successor Agreement to a Contract that expired on December 31, 2020; and

WHEREAS, the parties have arrived at a tentative agreement;

NOW, THEREFORE, the parties agree as follows:

- The provisions of the Agreement are subject to ratification by the members of the City Council and the general membership of the Union.
- A copy of this original document has been furnished to the representatives of the Union.
- This Agreement constitutes the full and complete agreement regarding all provisions of the labor contract to be executed hereunder during its term.
- The provisions of the expired Collective Bargaining Agreement shall be carried forward except as modified by this Agreement, the terms of which shall be incorporated into a successor collective bargaining agreement.
- Unless otherwise noted, all dates involving the duration of the Agreement shall be confirmed to the duration of the negotiated Agreement.

1. Dates/Duration of Agreement:

- A. Change the Effective Date on the cover page of the contract from January 1, 2016 through December 31, 2020 to January 1, 2021 through December 31, 2026.

2. Article III, Section 3, Overtime. Modify as follows:

Overtime will be assigned as equally as possible among the employees in the respective departments. Such assignments will be on a rotating basis and normally will be made from lists furnished by the shop stewards. Employees who are offered overtime work on such basis but who decline to accept shall be considered to have worked overtime for the purpose of determining equal division of overtime. In the event enough qualified employees are not then

Attachment: MOA Local 663 2021-26 100622 draft (2690 : LOCAL 663 STIPULATION OF AGREEMENT)

available, the EMPLOYER shall make the necessary assignments in inverse order of seniority beginning with the employees with the lowest seniority. ***The EMPLOYER will share the call list and call log for scheduled overtime with the Union. The Deputy Commissioner of Public Works, or another designee of the Commissioner, will oversee overtime schedules and confer with Shop Stewards as needed.***

3. **Article IV, Section 2, Settlement of Disputes, Sections 2-4. Modify as follows:**

Second Stage: Extend time for employee/Union to file grievance with Department Head from five (5) days to ten (10) days.

Third Stage: Extend time for Union President or designee to present grievance to Human Resources Commissioner from five (5) days to ten (10) days.

Arbitration: Extend time for notice of grievance to be file from within ten (10) days to within twenty (20) days.

4. **Article V, Discipline and Discharge. Remove entire section and replace as follows:**

All employees covered by this contract shall be protected by Article 5, Section 75 of the Civil Service Law.

5. **Article VI1, Section 1, Wage Schedule.** Modify the salary rates included in Exhibit 2 as follows:

Effective 1/1/21, increase annual salaries by 1.75%
 Effective 1/1/22, increase annual salaries by 2.0%,
 Effective 1/1/23, increase annual salaries by 2.0%,
 Effective 1/1/24, increase annual salaries by 3.0%
 Effective 1/1/25, increase annual salaries by 3.0%
 Effective 1/1/26, increase annual salaries by 3.0%

Retroactive payments shall be made within 90 days of execution of MOA.

[CONTINUE TO NEXT PAGE]

Attachment: MOA Local 663 2021-26 100622 draft (2690 : LOCAL 663 STIPULATION OF AGREEMENT)

6. **Article VI, Section 16 Longevity.** Modify the longevity schedule as follows and add an additional 20-year increase:

Longevity Schedule				
	5 Years of Service Completed	10 Years of Service Completed	15 Years of Service Completed	(NEW) 20 Years of service Completed
2023	\$1200	\$1400	\$2,100.00	\$3,000.00
2024	\$1300	\$1500	\$2,300.00	\$3,300.00
2025	\$1400	\$1600	\$2,500.00	\$3,600.00
2026	\$1500	\$1700	\$2,600.00	\$3,900.00

7. **Article VIII, Leaves:**

Section 1, Annual Vacation Leave: Increase employees with between six and twelve months of service from five (5) to ten (10) days, which may only be used after completion of six months of employment.

Section 4, Disposition of Unused Vacation Time. Modify the third paragraph of this section as follows:

Vacation leave balances accrued to the credit of an employee at the end of the vacation year for which carryover authorization has not been granted shall be credited to the employee's general sick bank.

Section 6, Sick Leave Accrual: Increase the sick leave accrual maximum from 225 days to 250 days.

Section 8, Sick Leave Control and Certification. Remove the last sentence from the first paragraph and increase the number of days an employee may be absent without a doctor's certificate from six (6) to seven (7).

The granting of sick leave with pay within the limits of the allowance accumulated to the employee's credit shall lie within the discretion of the employee's department head except that no more than ~~six (6)~~ seven (7) days in any calendar year may be allowed without a doctor's certificate. ~~For the purpose of control and certification, an absence of two or more days in succession due to a verifiable acute sickness or surgical procedure shall count as one day.~~

Section 9, Incentive: Effective January 1, 2022, increase sick leave bonuses as follows:

0 Days taken during the year: \$1,100
 1 Day taken during the year: \$700
 2 Days taken during the year: \$350

Section 12, Compassionate Leave: Modify the definition of “immediate family” as follows:

The immediate family is defined as follows: Grandparents, brother, sister, spouse, child, father, mother, father-in-law, mother-in-law and any relative of the employee or his/her spouse living in the same dwelling with the employee.

Section 14(c) Personal Leave: Add the following sentence: “Approval of personal leave shall not be unreasonably denied.”

Section 15, Paid Holidays. Add Juneteenth as a regular holiday with full pay for all employees covered by the Agreement.

8. **Article XI, Section 1, Health Insurance.** Add paragraph stating the current Retiree Health Insurance contribution rates:

The EMPLOYER agrees to pay the full cost of individual coverage for all employees in the unit hired prior to January 1, 1983 in retirement. All employees in the unit hired on or after January 1, 1983 shall contribute eighteen percent (18%) of the applicable premium for individual coverage in retirement. All employees in the unit enrolled in family coverage are required to contribute an additional sixty-five percent (65%) of the applicable premium for eligible dependent coverage in retirement.

9. **Article XI, Section 2, Employee Benefit Fund.** Increase the employee allowance as follows:

Effective 1/1/21: \$1550
 Effective 1/1/22: \$1600
 Effective 1/1/23: \$1650
 Effective 1/1/24: \$1700
 Effective 1/1/25: \$1750
 Effective 1/1/26: \$1800

10 . **Article XIII, General Provisions.**

Section 4, Work Clothing: Modify to provide that effective January 1, 2021, each unit member, including Community Service Officers, shall receive an annual allowance of \$800 to purchase and wear work clothing prescribed the Department. Unit members will purchase clothing by voucher system with a vendor designated by the City.

Section 8, Uniforms for Community Service Officers (CSOs). Modify to provide that CSOs will receive \$800 annual uniform allowance effective January 1, 2021 and for each year of the contract.

Section 12, Tool Allowance. Modify as follows:

Automotive Mechanic allowance will be increased to \$950/year for 2021, 2022, 2023, 2024, 2025, and 2026. Mechanic Helper allowance will be increased to \$500/year for 20201, 2022, 2023, 2024, 2025 and 2026.

11. The parties agree that within three (3) months of the execution of the Collective Bargaining Agreement, the Labor Management Committee will meet to discuss the pay rate of Grade 8 Automotive Mechanics.

For the AFSCME Local 663, Council 66

For the City of New Rochelle

City of New Rochelle
City Manager

MEMORANDUM

TO: Honorable Mayor and City Council
 THRU: Charles B. Strome, III, City Manager
 FROM: Charles Strome III, City Manager
 DATE: October 18, 2022
 SUBJECT: PROPOSED AMERICAN RESCUE PLAN ACT (ARPA) GRANT AWARDS -
 Resolution authorizing the disbursement of American Rescue Plan Act (ARPA)
 funding grant awards to eligible not-for-profit organizations.

In 2021, the Federal Government passed the American Rescue Plan Act of 2021 and the City of New Rochelle was awarded approximately \$37 million dollars to be split into two equal tranches. The first tranche of approximately \$18.5 million was received in 2021 and City Council authorized expending those funds in the following categories:

- *Green Infrastructure*
- *Social Infrastructure*
- *Economic Infrastructure*
- *Municipal Infrastructure*
- *Hazard Pay*
- *Compliance and Oversight*

The categories of Social Infrastructure and Economic Infrastructure involved receiving grant applications from the City's Not-For-Profit organizations and small businesses for the City to award grants to eligible applicants. City staff created an application process including a review of the applications by an internal committee. Recommendations from those committees are to be forwarded to City Council for review and final approval.

We have now completed that review process and are submitting recommendations to City Council for grant awards.

NOT FOR PROFIT GRANT APPLICATIONS: *The City received numerous applications totaling \$8,754,820 in requested funding. The Great majority of eligible not-for-profit applications are receiving funding, although most less than the amount requested. There are some applications that were ineligible and others which are being deferred until 2024. It should be noted that there will be additional funding for this category in the second tranche which will be awarded in 2023.) As the attached memorandum indicates, the staff committee recommendations for the first tranche are to award \$3,315,648 in funding to the grant*

applicants. The memorandum describes the program for which the funding was applied for, the requested amount and the recommended amount.

SMALL BUSINESS GRANT APPLICATIONS: The City received 143 applications from small business totaling \$12,273,437 in requested funding. Of the 143 applications, 63 were deemed eligible totaling \$4,772.36 in requested funding and the staff committee is recommending \$1,353,631 in grant awards. (It should be noted that the businesses determined to be ineligible were ineligible for either not providing the required tax information to complete the application or the business earned a profit during COVID which disqualifies any such business.) The attached memorandum details the eligible businesses, the amount of the requested grant and the recommended grant award.

HAZARD PAY FOR PRIVATE BUSINESSES: The City received 15 applications for private sector Hazard Pay totaling \$1,965,201 in requested funding. Of those, 10 were deemed eligible seeking \$1,103,753. The staff committee is recommending \$171,500 in grant awards. (See the Small Business memorandum which also details the Hazard Pay category.

RECOMMENDATION: It is recommended that the City Council adopt two resolutions, the first authorizing ARPA grant awards for eligible not-for-profit organizations and the second authorizing ARPA grant awards and Hazard Pay for eligible small businesses

LEGISLATION

RESOLUTION AUTHORIZING THE DISBURSEMENT OF AMERICAN RESCUE PLAN ACT (ARPA) FUNDING GRANT AWARDS TO ELIGIBLE NOT-FOR-PROFIT ORGANIZATIONS.

WHEREAS, in 2021, the Federal Government passed the American Rescue Plan Act of 2021 and the City of New Rochelle was awarded approximately \$37 million dollars to be split into two equal tranches; and

WHEREAS, the first tranche of approximately \$18.5 million was received in 2021 and City Council authorized expending those funds in the following categories:

- Green Infrastructure
- Social Infrastructure
- Economic Infrastructure
- Municipal Infrastructure
- Hazard Pay
- Compliance and Oversight

and

WHEREAS, the categories of Social Infrastructure and Economic Infrastructure involved receiving grant applications from the City's Not-For-Profit organizations and small businesses for the City to award grants to eligible applicants; and

WHEREAS, City staff created an application process including a review of the applications by an internal committee and shall be forwarded to City Council for review and final approval; and

WHEREAS, that review process has been completed and recommendations are being submitting to City Council for grant awards; now, therefore

BE IT RESOLVED, that the disbursement of American Rescue Plan Act (ARPA) funding grant awards to eligible not-for-profit organizations is hereby authorized.

ATTACHMENTS:

1. NOTFORPROFITARPAGRANTS
2. SMALLBUSINESSARPAGRANTS

City of New Rochelle
Community Engagement

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Charles Curtis, Director of Community Engagement
DATE: September 28, 2022
SUBJECT: PROPOSED REQUEST RE: ARPA FUNDING FOR FIRST TRANCHE
NONPROFIT REQUEST FOR PROPOSALS - Approval authorizing the City

The City of New Rochelle is in receipt of funds from the federal government titled: American Rescue Plan Act (ARPA). Part of the allowed uses is to strengthen the social infrastructure of the City through grants to local not-for-profit, service, and educational organizations that serve LMI and QCT populations. This funding by the City will be focused on: providing a continued response and to aid in the recovery from COVID-19, resulting in a stronger and more resilient New Rochelle community. The following proposals have been reviewed and scored by City staff-led scoring committee for eligibility (Organization, Program, ARPA).

Manager disperse funding for eligible nonprofit applications.

Attachment: NOTFORPROFITARPAGRANTS (2705 : ARPA GRANT AWARDS)

RECOMMENDATION: Fund the following organizations at the amounts listed.

Backyard Sports Cares

Requested Amount: \$48,900.00 Recommended Amount: **\$35,000.00**

Seeking funding to support skill-based sports education and programming to elementary school children who have limited access to youth sports (Webster, Jefferson, Columbus, Trinity, Davis) through Spring Travel Soccer League and Early Morning Soccer and Basketball Program (Jefferson, Trinity).

Bethesda Baptist Church/NR Affordable Housing

Requested Amount: \$125,000.00 Recommended Amount: **\$35,000.00**

Seeking funding to support: Lad's Lunch Program (providing hot meals each Saturday), Food Pantry, Youth Mentoring Program, and Senior Adult Care Center (co-sponsored with New Rochelle Affordable Housing, Inc.)

Boys and Girls Club - NR (Mascaro Renovations)

Requested Amount: \$1,496,100.00 Recommended Amount: **\$400,000.00**

This Capital Project includes replacing and upgrading the HVAC system, installing safer doors, exterior lighting, and a security system, replacing the elevator, upgrading the lavatories, and improving the walkway.

Boys and Girls Club - NR (STEAM)

Requested Amount: \$480,000.00 Recommended Amount: **\$240,000.00**

BGCNR, in partnership with The STEM Alliance and MakeInspires, proposes an innovative hands-on approach to Science, Technology, Engineering, Art, and Math (STEAM) learning whereby a state-of-the-art innovative STEAM Learning Lab will be developed at the BGCNR Remington Clubhouse.

Big Brothers Big Sisters of Westchester

Requested Amount: \$57,500.00 Recommended Amount: **\$15,000.00**

BBBSW is seeking funding to implement a volunteer recruitment campaign to engage new mentors and mentees from New Rochelle. The campaign's objective will be to generate at least 200 inquiries for potential Bigs and Littles from New Rochelle, targeting disadvantaged youth as mentees, while reaching out to college, corporate (working professionals), and retired

professional demographics to engage new mentors.

Choice of NY

Requested Amount: \$72,505.00

Recommended Amount: **\$24,168.00**

The purpose of this project is to provide and deliver fresh produce, protein, and shelf stable groceries to seniors, individuals, and families in New Rochelle with food insecurity or compromised mobility issues exacerbated by COVID.

ELOC/ United Charities

Requested Amount: \$62,700.00

Recommended Amount: **\$16,400.00**

The Summer Science and Environmental Program (SSEP) is an out-of-school program with the fourfold aim of mitigating against summer learning loss, overcoming historical disparities in STEM education, enhancing understanding of environmental science and the disruptive impact climate change will have on humanity, and exploring careers in newly emerging sectors of the green economy.

HOPE Community Services - Capital Improvements

Requested Amount: \$850,000.00

Recommended Amount: **\$300,000.00**

Site Rehabilitation for HOPE's new location at Casa Calabria at 81 Union Avenue in New Rochelle. The facility needs to be rehabilitated to allow HOPE to utilize the building in the way that will make it functional and efficient. Rehabilitation items are: HVAC, Self-Select Community Food Pantry, Community Dining Room, Kosher Pantry, Elevator System, Commercial Kitchen Equipment, Asbestos Abatement, Architect Fees.

HOPE Community Services - Homeless Resource Center

Requested Amount: \$399,640.00

Recommended Amount: **\$133,213.00**

HOPE requests funding to improve its Homeless Resource Center so they can offer wellness programming that empowers homeless persons to care about their mental and physical health. HOPE will provide an in-house wellness/activities coordinator and a part-time psychiatric social worker. HOPE would also like to support and develop the life skills that will allow participants a better chance at exiting homelessness, by providing an in-house part time job developer.

HOPE Community Services - Youth Services

Requested Amount: \$616,550.00

Recommended Amount: **\$205,517.00**

HOPE seeks funding for three HOPE4KIDS youth development programs (Homework Haven, Family Fun Fridays, Camp HOPE). Two will take place at Parkside Place apartments and the third, Camp HOPE, will take place at Holy Trinity Greek Orthodox Church. These programs provide enrichment opportunities and services for kids and their families that they would not otherwise have. All programming will be free to the participants.

Hudson Park Children's Greenhouse

Requested Amount: \$49,500.00

Recommended Amount: **\$17,250.00**

Hudson Park Children's Greenhouse is seeking funding for two programs: Nutrition and Wellness Education and Life Cycle of Food, (8-session programs, each taking place on a quarterly basis) Nutrition and Wellness Education (This program will emphasize that healthy food can be a culinary experience that honors one's heritage while also prolonging one's health).

Huguenot & New Rochelle Historical Association

Requested Amount: \$125,000.00

Recommended Amount: **\$100,000.00**

ARPA Funding in support of Repair, Restoration and Upgrade project (upgrades and restoration of Paine Cottage and one-room Schoolhouse), Creation of Educational Resources (Reestablish Class Trips to Paine Cottage, Historical Camp and School Break Program, in-class, and Virtual/Online resources)

Lincoln Park Conservancy

Requested Amount: \$1,833,330.00

Recommended Amount: **\$350,000.00**

The Lincoln Park Conservancy's grow! Eat Program is an initiative that addresses this critical problem of food insecurity by significantly increasing the supply of fresh, organic, locally grown produce directly to our target market, area soup kitchens, food pantries, and other distributors of food to the food insecure. The grow! Eat Program will create two (2) new community farms and two (2) greenhouses that will be used to supplement the existing 10,000sf grow! Lincoln Park Community Garden.

Meals on Wheels

Requested Amount: \$200,000.00

Recommended Amount: **\$200,000.00**

Funds are needed to support Meals on Wheels mission of providing a daily home-delivered meal service for homebound frail and/or elderly men and women who are alone, unable to

shop and cook for themselves and, thus, are without a reliable daily source of prepared hot and cold meals.

New Rochelle Basketball Assoc

Requested Amount: \$120,000.00

Recommended Amount: **\$40,000.00**

Funding will be used to support and expand the academic services provided by the NRBA to the full range of its student-athletes (Peer Tutoring and Mentoring Program for middle schoolers “Junior Huguenots”, Tutoring Services for High School student-athletes, and SAT/ACT prep programming).

New Rochelle BID (Coaching Program)

Requested Amount: \$15,000.00

Recommended Amount: **\$15,000.00**

Program to service NRBID businesses with coaching or services-- New Rochelle Downtown Business Improvement District (NRBID), our many small businesses, most of which are MBWE establishments, have been profoundly affected by the loss of business during the COVID pandemics and these programs will help them get back on their feet to meet the public on the level at which they need to be.

New Rochelle BID (Farmer's Market)

Requested Amount: \$45,000.00

Recommended Amount: **\$25,000.00**

This proposal seeks to revamp and re-envision this important community option for purchasing locally-grown, seasonal produce on a weekly basis during the Spring, Summer and Fall seasons. We are seeking to provide an increase in the New Rochelle Downtown BID Farmers Market subsidy coupons for those who need this on a weekly basis so that they can access fresh local produce in this neighborhood of few markets.

New Rochelle BID (Hire & Grow)

Requested Amount: \$15,000.00

Recommended Amount: **\$15,000.00**

Hire & Grow Community Jobs Partnership Program is a multi-faceted workforce development program with multiple components including: a) providing on-site training and work and b) featuring weekly professional job training sessions so the workers learn skills that make them solid workers and that are directly used in the workforce. This program is in partnership with the New Rochelle Youth Bureau.

New Rochelle Campership Fund

Requested Amount: \$80,000.00

Recommended Amount: **\$40,000.00**

Funding is needed to support summer camp scholarships, or “camperships” to many local not-for-profit camps including, but not limited to: New Rochelle Parks and Recreation camps (Kiddie Kamp; Jefferson School Camp; Trinity School Camp; Ward School Camp; and Camp Joy), YMCA camps, Boys & Girls Club camps, Backyard Sports Camp, HOPE camp, Songcatchers Camp, Girl Scouts of New Rochelle, Pelham Arts Center Camp and New Rochelle Day Nursey. **These partner organizations are not seeking ARPA funds to support their summer camp efforts.**

New Rochelle Chamber of Commerce

Requested Amount: \$49,000.00

Recommended Amount: **\$49,000.00**

Funding needed to: Expungement of member debt, enhance our member Training/Educational Series to reflect emerging post-pandemic needs, creation of a new professional website while providing training to NR Chamber staff and maintenance of the website.

American Legion/New Rochelle Post 8

Requested Amount: \$50,000.00

Recommended Amount: **\$24,500.00**

Funding requested for Capital Improvements (Kitchen), part-time caseworker, outreach and scholarships to Veterans for those with inability to pay (Legion Dues), and creation of a Hot Lunch program for veterans experiencing homelessness.

New Rochelle Pride (Support Groups)

Requested Amount: \$69,800.00

Recommended Amount: **\$20,000.00**

In order to support LGBTQ people and those questioning, we would like to offer Support Groups in order to provide a safe space for all who need it. The idea is simple, host two support groups for youth (12- 15 & 16-20), a support group for PoC, a support group for Latinx, a support group for Senior Citizens & a Support group for Transgender folk and their families. We would offer them wrap around services in order to better meet the rising needs of our community

OASIS Men's Shelter/WestCOP

Requested Amount: \$250,000.00

Recommended Amount: **\$62,500.00**

Funding is needed to support necessary capital renovations (Bathrooms/Shower), replacement of bedding (Bed frames, Mattresses, and Bedding), and the creation of a Day Program. **Cost of Case Manager will be shared with HOPE Community Services.**

One Change at a Time

Requested Amount: \$50,000.00

Recommended Amount: **\$50,000.00**

Bridging Generations is a project with the vision of inspiring the world by promoting intergenerational relationships. We bring together young and older generations to learn with and from each other. We lead and train youth staff and volunteers who serve isolated and socially deprived older adults.

Songcatchers

Requested Amount: \$80,000.00

Recommended Amount: **\$80,000.00**

Funding will be used to increase the amount of music scholarships for those without the ability to pay, re-hire of Development Director lost because of the pandemic.

United Community Centers of Westchester

Requested Amount: \$450,000.00

Recommended Amount: **\$225,000.00**

This capacity building project is designed to provide the opportunity to focus on growing the organization while meeting the needs of the vulnerable populations we serve. The project consists of hiring a caseworker to handle domestic violence cases, a caseworker to handle social services cases, a social worker to assist clients with coping with life's challenges, a program coordinator, and a consultant/grant writer to consistently focus on obtaining the revenues needed. Pre COVID UCCW was operating with a staff of 5 full time employees and 28 volunteers. To date, UCC has two full time employees yet the need for our services has increased by 50%.

WEDC - Dare to Grow Lab

Requested Amount: \$50,000.00

Recommended Amount: **\$50,000.00**

Dare To Grow Lab will target the City of New Rochelle's small business owners who have been in business for at least 3 years. It will provide targeted trainings to help business owners identify the next steps towards business growth and increased revenue. An experienced facilitator will facilitate the 11-week program for two cohorts (10-12 per cohort). Subject matter experts will deliver trainings on Business Vision/Mission/Growth Opportunities, Finances, Marketing, Leadership, Pricing and Streamlining Operations.

WEDC - Small Business Sprints

Requested Amount: \$50,000.00

Recommended Amount: **\$50,000.00**

Small Business Sprints targets minority-owned business owners and "runs" throughout 2023. It provides small business owners with necessary trainings to grow their business revenue, create

new jobs and ultimately stimulate the New Rochelle economy. The following will be offered separately to both English-speaking and Spanish-speaking cohorts.

Westchester Alphas Educational Foundation

Requested Amount: \$49,500.00

Recommended Amount: **\$49,500.00**

Expansion of mentoring program for rising 11th and 12th grade males of color, preparing for life outside of high school and guiding them through the college admissions journey. Program provides each student with one-on-one mentoring, college trips, enrichment programs, and SAT/ACT prep. At the conclusion of the program, each participant is given a suit for graduation.

WestCOP (Improvements)

Requested Amount: \$1,200,000.00

Recommended Amount: **\$400,000.00**

This project is for general renovations and improvements to the building at 95 Lincoln Avenue, New Rochelle, New York. These renovations and upgrades will update the building to new standards, restore functionality, and improve overall community use. It may include but is not limited to renovating the bathrooms, installing energy-efficient windows and doors, repurposing the basement rooms (the new home of OYP New Rochelle Justice Center Program), and updating the two kitchens, including adding energy-efficient appliances, classrooms, and community event space

WJCS (Digital Equity Now)

Requested Amount: \$50,000.00

Recommended Amount: **\$25,000.00**

ParentChild+ Digital Equity Now (PC+DEN) will provide residents attending its WJCS early childhood programming in New Rochelle with technological devices and the learning/training opportunities necessary to effectively utilize those devices to benefit their family households. Each parent/guardian attending the program will receive: one computing device (typically a Chromebook); a hotspot (with high speed connectivity, unlimited data, and no drop-down speed); and a minimum of 15 hours of tech education targeted for the needs of the specific families involved.

YMCA

Requested Amount: \$951,078.00

Recommended Amount: **\$400,000.00**

This project would invest in the facility (elevator, pool, other capital improvements) and support key positions like the Director of Aquatics and Youth Sports Manager, as well as establish a new position of Health and Safety Manager. These investments will allow the New Rochelle YMCA to maintain this important community resource, expand services, and invest in programs

like lifeguard training, youth development and swim lessons for all ages that address the lifeguard shortage, as well as help our youth and families dealing with many symptoms from COVID.

MEMORANDUM

To: Charles B. Strome III, City Manager
Kathleen Gill Esq., Deputy City Manager/Corporation Counsel

From: Rita Azrelyant, Assistant to the City Manager/Risk Manager

Date: October 13, 2022

Re: ARPA First Tranche Funding Request for Small Business Assistance and Hazard Pay Recipients

The American Rescue Plan Act (ARPA), signed into law last year, provided over \$350 billion in emergency funding for state, local, territorial and Tribal governments to respond to the COVID19 pandemic, address financial disparities and assist in economic recovery. The City of New Rochelle received \$38 million in two tranches, \$5.88 million of those funds were allocated towards small business recovery, hazard pay and non-for-profit organizations.

Small Business Assistance Grant

Below is a list of ARPA eligible small businesses, funding request amount and the recommended funding amount by the Review Committee. Funding was prioritized based on financial hardship, revenue loss and request of funds proportional to income.

Total Number of Applications: 143

Total Requested Amount: \$12,273,437

Total Number Eligible for Funding: 62

Total Requested Amount: \$4,772,736

Total Recommended Amount: \$1,353,631

<u>Business Name</u>	<u>Requested Amount</u>	<u>Recommended Amount</u>
583 Restaurant Corp	\$25,000	\$25,000
Alex Pappalardi & Son	\$20,000	\$7,711
Anna & Jacks Treehouse	\$200,000	\$49,900
Ay Caramba Mexican Restaurant	\$42,364	\$13,865
Aztec Sports Inc	\$20,000	\$11,772
Bella Glo Beauty SPA	\$20,000	\$7,021
Black to Blonde Knotz Hair Studio	\$10,000	\$10,000
Bridge Records Inc.	\$20,000	\$20,000
Carthom Upholstery Corp	\$150,000	\$5,684
Carvel Sash Scorpion Corp	\$70,000	\$30,897
Comfort Homes & Property Mgmts.	\$100,000	\$19,222
Consign It on Main	\$50,000	\$32,785
Dance Connection	\$10,000	\$3,943
DEE'S TOTS CHILDCARE	\$150,000	\$31,561
Harquin Graphics Inc	\$75,000	\$39,523
Hong Ik Martial Arts	\$100,000	\$16,479
Hour to Exit Escape Games	\$49,900	\$17,430

Attachment: SMALLBUSINESSARPA GRANTS (2705 : ARPA GRANT AWARDS)

Business Name	Requested Amount	Recommended Amount
ITech Repairs, Inc DBA iFix	\$45,000	\$29,318
Ivar Hyden BackStreet Gallery	\$20,000	\$8,838
JamaicanFood.com	\$134,000	\$40,454
Janeth's Salon Corp	\$12,000	\$12,000
Jay's Boutique Corp	\$20,000	\$9,614
Julima's Daycare	\$10,000	\$5,302
Jungle Gym Martial Arts	\$12,000	\$12,000
Kaffury Designs	\$20,000	\$4,697
Kingston Foods	\$143,000	\$49,900
Krav Maga International, Inc.	\$148,022	\$40,143
Little Whimsies Photography	\$5,000	\$3,143
Spectators	\$50,000	\$49,900
Lord & Andra LLC	\$650,000	\$8,416
Masterpiece Accounting Services	\$75,000	\$13,948
MG Accounting and Tax Inc	\$15,000	\$6,024
Michael & Joseph's Barber Shop	\$15,000	\$7,184
Mint Limo LLC	\$25,000	\$12,141
Misal Corp	\$50,000	\$11,882
Modern Cousins LLC	\$400,000	\$49,900
NATURAL HEALTH CENTER	\$50,000	\$11,331
Nicks New Hair Design Herrera	\$50,000	\$19,828
No Game Discounts	\$50,000	\$1,594
North End Fitness	\$72,250	\$49,900
Palmer Avenue Towing Corp.	\$50,000	\$49,900
Pegs Firehouse Café	\$100,000	\$49,900
Preschool Learning Center	\$30,000	\$30,000
Pursuit of Perfection CrossFit POP	\$153,700	\$18,872
Quawana's Place	\$10,000	\$5,105
Razamataz Events Unlimited, Inc.	\$75,000	\$16,475
Richard Bienenfeld Architect,	\$498,600	\$49,900
Salsa Y Brasa Restaurant	\$50,000	\$29,040
Smoke & Spice NY grill Corp.	\$55,000	\$16,450
Stillman INC dba Liebman's	\$25,000	\$25,000
SuggarPlums Food 4 the Soul	\$50,000	\$5,689
Super Soul Inc Sledge	\$50,000	\$16,650
sWorks Technology	\$12,000	\$1,052
The Rock Club LLC	\$49,900	\$49,900
Tommart Corp La Clave	\$80,000	\$13,108
Touche Moi Massage	\$25,000	\$7,266
TP TOYS AND ACCESSORIES	\$60,000	\$17,765
tyrone & brothers	\$50,000	\$18,937
Vendola Designs Street Style Sign	\$25,000	\$25,000
Vision Fire Coaching	\$50,000	\$9,480
WISE CENTER INC	\$20,000	\$20,000
Youngie Inc	\$100,000	\$49,900

Attachment: SMALLBUSINESSARPAGRANTS (2705 : ARPA GRANT AWARDS)

Hazard Pay

Below is a list of ARPA eligible organizations and hazard pay award based on the total amount of full time and part time employees working at the height of the COVID19 pandemic in 2020. Hazard pay was extended to organizations within one of the following eligible industries: food retail facilities, healthcare and social assistance, transit and ground passenger transportation and other industries that are listed above but, were allowed to remain open during the Closure Order.

Total Number of Applications: 15

Total Requested Amount: \$1,965,201

Total Number of Eligible Applications: 10

Total Requested Amount: \$1,103,753

Total Recommended Amount: \$171,500

<u>Applicant</u>	<u>Recommended Amount</u>	<u>Industry</u>
Anna & Jack's Treehouse	\$35,500	Childcare
Baby Cubs Day Care	\$8,000	Childcare
Dee's Tots Childcare	\$5,500	Child Care
New Rochelle Affordable Housing	\$17,000	Community Services
New Rochelle Boys & Girls Club	\$37,000	Community Services
New Rochelle Chamber of Commerce	\$1,000	Community Services
Monroe College	\$38,000	Education
Mini's Latin Fusion	\$2,500	Food Retail Facilities
Nolan Krinick DDS	\$6,000	Healthcare
Scarsdale Volunteer Ambulance Corp	\$18,000	Health Care

*Funding award is subject to documentation to support funding request, state and federal guidelines specified in the U.S. Treasury's Final Rule.

City of New Rochelle
City Manager

MEMORANDUM

TO: Honorable Mayor and City Council

THRU: Charles B. Strome, III, City Manager

FROM: Charles Strome III, City Manager

DATE: October 18, 2022

SUBJECT: PROPOSED ARPA GRANT AWARDS - Resolution authorizing the disbursement of American Rescue Plan Act (ARPA) funding grant awards for hazard pay to eligible small businesses.

In 2021, the Federal Government passed the American Rescue Plan Act of 2021 and the City of New Rochelle was awarded approximately \$37 million dollars to be split into two equal tranches. The first tranche of approximately \$18.5 million was received in 2021 and City Council authorized expending those funds in the following categories:

- *Green Infrastructure*
- *Social Infrastructure*
- *Economic Infrastructure*
- *Municipal Infrastructure*
- *Hazard Pay*
- *Compliance and Oversight*

The categories of Social Infrastructure and Economic Infrastructure involved receiving grant applications from the City's Not-For-Profit organizations and small businesses for the City to award grants to eligible applicants. City staff created an application process including a review of the applications by an internal committee. Recommendations from those committees are to be forwarded to City Council for review and final approval.

We have now completed that review process and are submitting recommendations to City Council for grant awards.

NOT FOR PROFIT GRANT APPLICATIONS: *The City received numerous applications totaling \$8,754,820 in requested funding. The Great majority of eligible not-for-profit applications are receiving funding, although most less than the amount requested. There are some applications that were ineligible and others which are being deferred until 2024. It should be noted that there will be additional funding for this category in the second tranche which will be awarded in 2023.) As the attached memorandum indicates, the staff committee recommendations for the first tranche are to award \$3,315,648 in funding to the grant*

applicants. The memorandum describes the program for which the funding was applied for, the requested amount and the recommended amount.

SMALL BUSINESS GRANT APPLICATIONS: The City received 143 applications from small business totaling \$12,273,437 in requested funding. Of the 143 applications, 63 were deemed eligible totaling \$4,772.36 in requested funding and the staff committee is recommending \$1,353,631 in grant awards. (It should be noted that the businesses determined to be ineligible were ineligible for either not providing the required tax information to complete the application or the business earned a profit during COVID which disqualifies any such business.) The attached memorandum details the eligible businesses, the amount of the requested grant and the recommended grant award.

HAZARD PAY FOR PRIVATE BUSINESSES: The City received 15 applications for private sector Hazard Pay totaling \$1,965,201 in requested funding. Of those, 10 were deemed eligible seeking \$1,103,753. The staff committee is recommending \$171,500 in grant awards. (See the Small Business memorandum which also details the Hazard Pay category.

RECOMMENDATION: It is recommended that the City Council adopt two resolutions, the first authorizing ARPA grant awards for eligible not-for-profit organizations and the second authorizing ARPA grant awards and Hazard Pay for eligible small businesses

LEGISLATION

RESOLUTION AUTHORIZING THE DISBURSEMENT OF AMERICAN RESCUE PLAN ACT (ARPA) FUNDING GRANT AWARDS FOR HAZARD PAY TO ELIGIBLE SMALL BUSINESSES.

WHEREAS, in 2021, the Federal Government passed the American Rescue Plan Act of 2021 and the City of New Rochelle was awarded approximately \$37 million dollars to be split into two equal tranches; and

WHEREAS, the first tranche of approximately \$18.5 million was received in 2021 and City Council authorized expending those funds in the following categories:

- Green Infrastructure
- Social Infrastructure
- Economic Infrastructure
- Municipal Infrastructure
- Hazard Pay
- Compliance and Oversight

and

WHEREAS, the categories of Social Infrastructure and Economic Infrastructure involved receiving grant applications from the City's Not-For-Profit organizations and small businesses for the City to award grants to eligible applicants; and

WHEREAS, City staff created an application process including a review of the applications by an internal committee and shall be forwarded to City Council for review and final approval; and

WHEREAS, that review process has been completed and recommendations are being submitting to City Council for grant awards; now, therefore

BE IT RESOLVED, that the disbursement of American Rescue Plan Act (ARPA) funding grant awards to eligible small businesses is hereby authorized.

City of New Rochelle
Police Department

MEMORANDUM

TO: Honorable Mayor and City Council

THRU: Charles B. Strome, III, City Manager

FROM: Robert Gazzola, Police Commissioner

DATE: October 18, 2022

SUBJECT: PROPOSED ACCEPTANCE OF NEW YORK STATE DEPARTMENT OF HOMELAND SECURITY AND EMERGENCY SERVICES TARGETED TACTICAL TEAM GRANT AWARD AND PROPOSED AMENDMENT TO 2022 BUDGET: RE: TARGETED TACTICAL TEAM GRANT AWARD - Ordinance accepting New York State Department of Homeland Security and Emergency Services Targeted Tactical Team grant, amending Ordinance No. 180 of 2021, the budget of the City of New Rochelle for 2022, and appropriating funds therefor (New Rochelle Police Department).

Background

New Rochelle has been awarded \$75,000.00 from the New York State Department of Homeland Security and Emergency Services. This grant is to enhance the capabilities of our tactical team, the NRPD Critical Incident Unit and to maintain SWAT accreditation with the State of New York. The funds will be used to purchase equipment and pay for overtime and training as needed to reach the equipment and training standards of SWAT accreditation as specified in the grant program directive.

Recommendation

It is recommended that Council accept and appropriate this funding for this purpose.

Section 2. Ordinance No. 180 of 2021, the budget of the City of New Rochelle for 2022, is hereby amended as follows:

Increase Revenue:

1322-4389-3136	Tactical Grant	\$75,000
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Increase Appropriations:

3122-14000-3136	Salaries/Overtime	\$23,555
3122-27000-3136	Equipment	\$44,000

3122-48500-3136	Training	\$ 5,400
3122-8XXX-3136	Various Fringe Benefits	\$ 2,045

LEGISLATION

ORDINANCE ACCEPTING NEW YORK STATE
DEPARTMENT OF HOMELAND SECURITY AND
EMERGENCY SERVICES TARGETED TACTICAL TEAM
GRANT, AMENDING ORDINANCE NO. 180 OF 2021, THE
BUDGET OF THE CITY OF NEW ROCHELLE FOR 2022, AND
APPROPRIATING FUNDS THEREFOR (NEW ROCHELLE
POLICE DEPARTMENT).

WHEREAS, the City has been awarded \$75,000 from the New York State Department of Homeland Security and Emergency Services (NYS DHSES) to enhance the capabilities of the Police Department's tactical team and Critical Incident Unit and to maintain SWAT accreditation with the State of New York; and

WHEREAS, the funds shall be used to purchase equipment and pay for overtime needed to reach the equipment and training minimums of SWAT accreditation as specified in the grant program directives; now, therefore

BE IT ORDAINED by the City of New Rochelle:

Section 1. The Council of the City of New Rochelle hereby accepts the New York State Department of Homeland Security and Emergency Services Grant in the amount of \$75,000.

Section 2. Ordinance No. 170 of 2020, the Budget of the City of New Rochelle for 2021, is hereby amended in order to provide for the acceptance and implementation of this \$75,000 grant, as follows:

Increase Revenue:

1322-4389-3136	Tactical Grant	\$75,000
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Increase Appropriations:

3122-14000-3136	Salaries/Overtime	\$23,555
3122-27000-3136	Equipment	\$44,000
3122-48500-3136	Training	\$ 5,400
3122-8XXX-3136	Various Fringe Benefits	\$ 2,045

Section 3. The City Manager is hereby authorized to make such representation and execute such documentation as may be necessary and required to file and accept the \$75,000 grant.

City of New Rochelle
Police Department

MEMORANDUM

TO: Honorable Mayor and City Council

THRU: Charles B. Strome, III, City Manager

FROM: Robert Gazzola, Police Commissioner

DATE: October 18, 2022

SUBJECT: PROPOSED ACCEPTANCE OF BULLETPROOF VEST PARTNERSHIP ACT GRANT; AND PROPOSED AMENDMENT TO 2022 BUDGET - Ordinance accepting the Justice Department's Bulletproof Vest Partnership Act Grant, amending Ordinance No. 180 of 2021, the Budget of the City of New Rochelle for 2022, and appropriating funds therefor (New Rochelle Police Department Bulletproof Vest Program).

Background

The New Rochelle Police Department currently needs bulletproof vests for new hires and replacement vests for current employees. We submitted an application for a grant from the Bulletproof Vest Partnership Program, from the Office of Justice Programs. We recently learned that we were awarded \$25,758 for bulletproof vests from the program.

Recommendation

That the funds awarded by the Justice Department's Bulletproof Vest Partnership Act Grant Program for 2022 will be used to purchase vests for new recruits as well as replacement vests for our officers.

It is recommended that Council accept and appropriate the funding for this purpose.

Section 2. Ordinance No. 180 of 2021, the budget of the City of New Rochelle for 2022, is hereby amended as follows:

Increase Revenues:

3130-4389	Federal Aid - Bullet-Proof Vests	\$25,758
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Increase Appropriations:

3130-27100	Equipment -Bullet-Proof Vests	\$25,758
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LEGISLATION

ORDINANCE ACCEPTING THE JUSTICE DEPARTMENT'S BULLETPROOF VEST PARTNERSHIP ACT GRANT, AMENDING ORDINANCE NO. 180 OF 2021, THE BUDGET OF THE CITY OF NEW ROCHELLE FOR 2022, AND APPROPRIATING FUNDS THEREFOR (NEW ROCHELLE POLICE DEPARTMENT BULLETPROOF VEST PROGRAM).

BE IT ORDAINED by the City of New Rochelle:

Section 1. The Council of the City of New Rochelle hereby accepts the Justice Department's Bulletproof Vest Partnership Act Grant in the amount of \$25,758.

Section 2. Ordinance No. 180 of 2021, the Budget of the City of New Rochelle for 2022, is hereby amended in order to provide for the acceptance and implementation of this \$25,758 grant, as follows:

Increase Revenues:

3130-4389	Federal Aid - Bullet-Proof Vests	\$25,758
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Increase Appropriations:

3130-27100	Equipment -Bullet-Proof Vests	\$25,758
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Section 3. The City Manager is hereby authorized to make such representation and execute such documentation as may be necessary and required to file and accept the \$25,758 grant.

ATTACHMENTS:

1. Memo to council_Bulletproof Vest Partnership Act Grant_Hayes

City of New Rochelle
Police Department

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Robert Gazzola, Police Commissioner
DATE: October 7, 2022
SUBJECT: Bulletproof Vest Partnership Act Grant

Background

The New Rochelle Police Department currently needs bulletproof vests for new hires and replacement vests for current employees. We submitted an application for a grant from the Bulletproof Vest Partnership Program, from the Office of Justice Programs. We recently learned that we were awarded \$25,758 for bulletproof vests from the program.

Recommendation

The funds awarded by the Justice Department's Bulletproof Vest Partnership Act Grant Program for 2022 will be used to purchase vests for new recruits as well as replacement vests for our officers.

It is recommended that Council accept and appropriate this funding for this purpose.

Accounts

Increase appropriations:

3130-27100 equipment – bullet proof vests \$25,758

Increase estimated revenues:

3130-4389 federal aid – bullet proof vests \$25,758

RG:bc

Cc: Kathleen Gill, Corp. Counsel
Ed Ritter, Finance Commissioner

Attachment: Memo to council_Bulletproof Vest Partnership Act Grant_Hayes (2022-156 : BULLETPROOF VEST PARTNERSHIP ACT GRANT)

APPLICATION DETAILS

APPLICATION PROFILE

Participant	NEW ROCHELLE CITY
Fiscal Year	2022
Number of Agencies Applied	0
Total Number of Officers for Application	172
Number of Officers on Approved Applications	172

APPLICATION PROFILE

Fiscal Year	2022				
Vest Replacement Cycle 	5				
Number of Officers	172				
Number of Emergency Replacement Needs 	<table> <tr> <td>Number of Stolen or Damaged</td><td>0</td></tr> <tr> <td>Number of Officer Turnover</td><td>0</td></tr> </table>	Number of Stolen or Damaged	0	Number of Officer Turnover	0
Number of Stolen or Damaged	0				
Number of Officer Turnover	0				

APPLICATION DETAILS

NIJ#	Quantity	Unit Price	Extended Cost	Tax Shipping and Handling	Total Cost
AXBIIIA	50	\$1,030.32	\$51,516.00	\$0.00	\$51,516.00
Grand Totals	50		\$51,516.00	\$0.00	\$51,516.00

AWARD SUMMARY FOR FY2022 REGULAR FUND

Funds Type	Eligible Amount	Award	Date Approved	Status
Regular Fund	\$51,516.00	\$25,758.00	09/21/22	Approved by BVP
Grand Totals:	\$51,516.00	\$25,758.00		

RETURN

City of New Rochelle
Development

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Adam Salgado, Commissioner of Development
DATE: October 18, 2022
SUBJECT: LEAD AGENCY STATUS RE: PROPOSED AMENDMENT TO ZONING CODE, CHAPTER 331, SECTION 331-27.1, WATERFRONT ACCESS ; AND PROPOSED AMENDMENT TO CHAPTER 133, FEES - Resolution declaring lead agency status relative to the proposed ordinance adding Section 331-27.1, Waterfront Access, and amending Section 133-1, Enumeration of Fees, of Chapter 133, Fees, of the Code of the City of New Rochelle.

Resolution declaring lead agency status relative to the proposed ordinance adding Section 331-27.1, Waterfront Access, and amending Section 133-1, Enumeration of Fees, of Chapter 133, Fees, of the Code of the City of New Rochelle.

LEGISLATION

RESOLUTION DECLARING LEAD AGENCY STATUS
RELATIVE TO THE PROPOSED ORDINANCE ADDING
SECTION 331-27.1, WATERFRONT ACCESS, AND
AMENDING SECTION 133-1, ENUMERATION OF FEES, OF
CHAPTER 133, FEES, OF THE CODE OF THE CITY OF NEW
ROCHELLE.

WHEREAS, this City Council hereby wishes to declare itself to be the Lead Agency with respect to the environmental review of the proposed action adding Section 331-27.1, Waterfront Access, and amending Section 133-1, Enumeration of Fees, of Chapter 133, Fees, of the Code of the City of New Rochelle; and

WHEREAS, this City Council finds the Proposed Action to be an Unlisted Action pursuant to SEQRA; and

WHEREAS, the Department of Development has prepared and submitted an Environmental Assessment Form (EAF) for the Proposed Action, on file for inspection with the City Clerk's Office; now, therefore,

BE IT RESOLVED that this City Council hereby declares itself to be the lead agency with respect to the proposed amendment and directs that the proposed amendment be sent to the Planning Board and the Westchester County Planning Department for review and recommendation.

City of New Rochelle

Development

MEMORANDUM

TO: Honorable Mayor and City Council

THRU: Charles B. Strome, III, City Manager

FROM: Adam Salgado, Commissioner of Development

DATE: October 18, 2022

SUBJECT: PROPOSED AMENDMENT TO CHAPTER 33I, SECTION 331-27.1, ZONING CODE, AND CHAPTER 133, FEES RE: WATERFRONT ACCESS FUND - Ordinance adding Section 331-27.1, Zoning Code, Waterfront Access, and amending Section 133-1, Enumeration of Fees, of the Code of the City of New Rochelle. (Intro. 10/18/22; Public Hearing).

Introduction:

New zoning for the Pelham Road corridor is currently under review as a result of a petition submitted by MCRT Investments, LLC. The zoning as amended by staff includes requirements for payments into the City's Waterfront Access Fund.

The Waterfront Access Fund was established in 2016 as a result of the Watermark Pointe rezoning on Davenport Neck in the R1-WF-10 district. As noted in the resolution (No. 201 of 2016), the fund pertains to development projects that are adjacent to the City's waterfront. As discussed below, staff recommends actions to expand the scope of the Waterfront Access Fund, including its renaming to the Coastal Resiliency and Waterfront Management Fund to better reflect its potential uses.

Recommendation:

Staff recommends that Council adopt a set of resolutions to expand the scope of projects where this fee could apply, such that properties that are not directly on the water, but benefit from certain zoning incentives, can contribute to this fund where appropriate. This should include the area of the proposed Pelham Corridor Waterfront Development Floating zone, which covers the seaward side of Pelham Road from Water Street to the municipal boundary with the Village of Pelham Manor, as well as the Downtown Overlay Zone.

The potential use of the funds should be defined as well. The proposed zoning prepared by staff stipulates the following, amended to reflect the renaming of the fund:

Fees shall be used for funding waterfront public access amenities; local shuttle services to access City beached and parks; improvements to City-owned

waterfront parks and marina; provision of public parking for public amenities; dredging and other regenerative activities associated with waterway access and management or any other activity specified by the Coastal Resiliency and Waterfront Management Fund.

Additionally, staff recommends corresponding changes to Chapter 331 Zoning and Chapter 133 Fees.

Staff recommends that Council set a public hearing on the proposed amendments and refer same to the Planning Board, and Westchester County Planning Board. It is also recommended that the City Council declare itself Lead Agency for the purposes of an environmental review pursuant to the State Environmental Quality Review Act (SEQRA).

Finally, staff recommends that the Council approve this amendment pending the outcome of the public hearing and responses from the City's Planning Board, and the Westchester County Planning Board.

LEGISLATION

ORDINANCE ADDING SECTION 331-27.1, WATERFRONT ACCESS, AND AMENDING SECTION 133-1, ENUMERATION OF FEES, OF CHAPTER 133, FEES, OF THE CODE OF THE CITY OF NEW ROCHELLE.

BE IT ORDAINED by the City of New Rochelle:

Section 1. The Zoning Code of the City of New Rochelle is hereby amended by adding the following:

§ 331-27.1 Waterfront Access

Development built in accordance with Article XXII Downtown Overlay Zones, the R1-WF-10 One-Family Waterfront Residence District, and on the seaward side of Pelham Road from Water Street to the boundary with the Village of Pelham Manor, shall provide waterfront public access or scenic view public access as set forth in their respective sections of the code and/or comply with the fee requirements set forth set forth in their respective sections of the code and/or in Chapter 133 Fees.

Section 2. Section 133-1, Enumeration of fees, is hereby amended as follows:

§ 133-1 Enumeration of Fees

The following schedule of fees is hereby established with respect to licenses, permits, registrations, documents and activities required or regulated under the provisions of various chapters of the Code of the City of New Rochelle. Specific requirements and regulations for the following shall be as set forth in the chapter to which reference is made below. The following fees shall apply commencing January 1, 2021, and shall renew each calendar year unless amended prior thereto in the fee and deposit schedule maintained by the City Manager.

Code Section	Type of Fee	Amount
<u>§ 331-27.1</u>	<u>Waterfront Access</u>	<u>\$10,000/residential unit*</u> <u>Unless established elsewhere in</u> <u>Chapter 331 on a site-specific basis.</u>

Matter underlined added.

ATTACHMENTS:

1. Waterfront Access Fund EAF
2. Waterfront Access Fees Amendments 10-13-22

Short Environmental Assessment Form

Part 1 - Project Information

Instructions for Completing

Part 1 – Project Information. The applicant or project sponsor is responsible for the completion of Part 1. Responses become part of the application for approval or funding, are subject to public review, and may be subject to further verification. Complete Part 1 based on information currently available. If additional research or investigation would be needed to fully respond to any item, please answer as thoroughly as possible based on current information.

Complete all items in Part 1. You may also provide any additional information which you believe will be needed by or useful to the lead agency; attach additional pages as necessary to supplement any item.

Part 1 – Project and Sponsor Information			
Name of Action or Project: Waterfront Access Fund			
Project Location (describe, and attach a location map): City of New Rochelle			
Brief Description of Proposed Action: The City Council of the City of New Rochelle is proposing ordinance changes pertaining waterfront access of private developments. The changes update the fee section of the code to reflect an existing requirement for a waterfront access fee where a private development elects not to construct required public waterfront accessibility. It amends this requirement to reflect other sections of the code that may also require waterfront access fees. Additionally, the proposal makes explicit where waterfront access is required within the City, or, in the alternative, a fee-in-lieu may be provided.			
Name of Applicant or Sponsor: City of New Rochelle		Telephone: E-Mail:	
Address: 515 North Avenue			
City/PO: New Rochelle		State: NY	Zip Code: 10801
1. Does the proposed action only involve the legislative adoption of a plan, local law, ordinance, administrative rule, or regulation? If Yes, attach a narrative description of the intent of the proposed action and the environmental resources that may be affected in the municipality and proceed to Part 2. If no, continue to question 2.		NO ☐	YES ☒
2. Does the proposed action require a permit, approval or funding from any other government Agency? If Yes, list agency(s) name and permit or approval:		NO ☐	YES ☐
3. a. Total acreage of the site of the proposed action? _____ acres b. Total acreage to be physically disturbed? _____ acres c. Total acreage (project site and any contiguous properties) owned or controlled by the applicant or project sponsor? _____ acres			
4. Check all land uses that occur on, are adjoining or near the proposed action: ☐ Urban ☐ Rural (non-agriculture) ☐ Industrial ☐ Commercial ☐ Residential (suburban) ☐ Forest ☐ Agriculture ☐ Aquatic ☐ Other(Specify): ☐ Parkland			

		NO	YES	N/A
5.	Is the proposed action,			
a.	A permitted use under the zoning regulations?	☐	☐	☐
b.	Consistent with the adopted comprehensive plan?	☐	☐	☐
6.	Is the proposed action consistent with the predominant character of the existing built or natural landscape?		NO	YES
		☐	☐	☐
7.	Is the site of the proposed action located in, or does it adjoin, a state listed Critical Environmental Area?		NO	YES
	If Yes, identify: _____	☐	☐	☐
8.	a. Will the proposed action result in a substantial increase in traffic above present levels?		NO	YES
	b. Are public transportation services available at or near the site of the proposed action?	☐	☐	☐
	c. Are any pedestrian accommodations or bicycle routes available on or near the site of the proposed action?	☐	☐	☐
9.	Does the proposed action meet or exceed the state energy code requirements?		NO	YES
	If the proposed action will exceed requirements, describe design features and technologies: _____ _____	☐	☐	☐
10.	Will the proposed action connect to an existing public/private water supply?		NO	YES
	If No, describe method for providing potable water: _____	☐	☐	☐
11.	Will the proposed action connect to existing wastewater utilities?		NO	YES
	If No, describe method for providing wastewater treatment: _____	☐	☐	☐
12.	a. Does the project site contain, or is it substantially contiguous to, a building, archaeological site, or district which is listed on the National or State Register of Historic Places, or that has been determined by the Commissioner of the NYS Office of Parks, Recreation and Historic Preservation to be eligible for listing on the State Register of Historic Places?		NO	YES
	b. Is the project site, or any portion of it, located in or adjacent to an area designated as sensitive for archaeological sites on the NY State Historic Preservation Office (SHPO) archaeological site inventory?	☐	☐	☐
13.	a. Does any portion of the site of the proposed action, or lands adjoining the proposed action, contain wetlands or other waterbodies regulated by a federal, state or local agency?		NO	YES
	b. Would the proposed action physically alter, or encroach into, any existing wetland or waterbody?	☐	☐	☐
	If Yes, identify the wetland or waterbody and extent of alterations in square feet or acres: _____ _____ _____			

14. Identify the typical habitat types that occur on, or are likely to be found on the project site. Check all that apply:		
☐ Shoreline ☐ Forest ☐ Agricultural/grasslands ☐ Early mid-successional ☐ Wetland ☐ Urban ☐ Suburban		
15. Does the site of the proposed action contain any species of animal, or associated habitats, listed by the State or Federal government as threatened or endangered?	NO ☐	YES ☐
16. Is the project site located in the 100-year flood plan?	NO ☐	YES ☐
17. Will the proposed action create storm water discharge, either from point or non-point sources?	NO ☐	YES ☐
If Yes,	☐	☐
a. Will storm water discharges flow to adjacent properties?	☐	☐
b. Will storm water discharges be directed to established conveyance systems (runoff and storm drains)?	☐	☐
If Yes, briefly describe:		
18. Does the proposed action include construction or other activities that would result in the impoundment of water or other liquids (e.g., retention pond, waste lagoon, dam)?	NO ☐	YES ☐
If Yes, explain the purpose and size of the impoundment:		
19. Has the site of the proposed action or an adjoining property been the location of an active or closed solid waste management facility?	NO ☐	YES ☐
If Yes, describe:		
20. Has the site of the proposed action or an adjoining property been the subject of remediation (ongoing or completed) for hazardous waste?	NO ☐	YES ☐
If Yes, describe:		
I CERTIFY THAT THE INFORMATION PROVIDED ABOVE IS TRUE AND ACCURATE TO THE BEST OF MY KNOWLEDGE		
Applicant/sponsor/name: <u>City of New Rochelle</u> Date: <u>10/13/22</u>		
Signature: <u>Kia Ki</u> Title: <u>Director of Planning & Sustainability</u>		

Project: _____

Date: _____

Short Environmental Assessment Form

Part 2 - Impact Assessment

Part 2 is to be completed by the Lead Agency.

Answer all of the following questions in Part 2 using the information contained in Part 1 and other materials submitted by the project sponsor or otherwise available to the reviewer. When answering the questions the reviewer should be guided by the concept "Have my responses been reasonable considering the scale and context of the proposed action?"

	No, or small impact may occur	Moderate to large impact may occur
1. Will the proposed action create a material conflict with an adopted land use plan or zoning regulations?	☒	☐
2. Will the proposed action result in a change in the use or intensity of use of land?	☒	☐
3. Will the proposed action impair the character or quality of the existing community?	☒	☐
4. Will the proposed action have an impact on the environmental characteristics that caused the establishment of a Critical Environmental Area (CEA)?	☒	☐
5. Will the proposed action result in an adverse change in the existing level of traffic or affect existing infrastructure for mass transit, biking or walkway?	☒	☐
6. Will the proposed action cause an increase in the use of energy and it fails to incorporate reasonably available energy conservation or renewable energy opportunities?	☒	☐
7. Will the proposed action impact existing: a. public / private water supplies?	☒	☐
b. public / private wastewater treatment utilities?	☒	☐
8. Will the proposed action impair the character or quality of important historic, archaeological, architectural or aesthetic resources?	☒	☐
9. Will the proposed action result in an adverse change to natural resources (e.g., wetlands, waterbodies, groundwater, air quality, flora and fauna)?	☒	☐
10. Will the proposed action result in an increase in the potential for erosion, flooding or drainage problems?	☒	☐
11. Will the proposed action create a hazard to environmental resources or human health?	☒	☐

Project: _____

Date: _____

Short Environmental Assessment Form Part 3 Determination of Significance

For every question in Part 2 that was answered "moderate to large impact may occur", or if there is a need to explain why a particular element of the proposed action may or will not result in a significant adverse environmental impact, please complete Part 3. Part 3 should, in sufficient detail, identify the impact, including any measures or design elements that have been included by the project sponsor to avoid or reduce impacts. Part 3 should also explain how the lead agency determined that the impact may or will not be significant. Each potential impact should be assessed considering its setting, probability of occurring, duration, irreversibility, geographic scope and magnitude. Also consider the potential for short-term, long-term and cumulative impacts.

The City of New Rochelle's proposed changes to the code relating to waterfront access will have no adverse impact on the environment. The proposal simply adds a site plan component that must comply with all other existing codes and regulations, or, in the alternative, requires a payment in-lieu, which will be applied to municipal waterfront improvements.

- ☐ Check this box if you have determined, based on the information and analysis above, and any supporting documentation, that the proposed action may result in one or more potentially large or significant adverse impacts and an environmental impact statement is required.
- ☒ Check this box if you have determined, based on the information and analysis above, and any supporting documentation, that the proposed action will not result in any significant adverse environmental impacts.

City Council - City of New Rochelle

10/13/22

Name of Lead Agency

Date

Adam Salgado

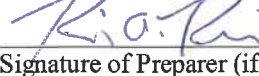
Commissioner of Development

Print or Type Name of Responsible Officer in Lead Agency

Title of Responsible Officer



Signature of Responsible Officer in Lead Agency



Signature of Preparer (if different from Responsible Officer)

PRINT FORM

Project: _____

Date: _____

Short Environmental Assessment Form

Part 2 - Impact Assessment

Part 2 is to be completed by the Lead Agency.

Answer all of the following questions in Part 2 using the information contained in Part 1 and other materials submitted by the project sponsor or otherwise available to the reviewer. When answering the questions the reviewer should be guided by the concept "Have my responses been reasonable considering the scale and context of the proposed action?"

	No, or small impact may occur	Moderate to large impact may occur
1. Will the proposed action create a material conflict with an adopted land use plan or zoning regulations?	☒	☐
2. Will the proposed action result in a change in the use or intensity of use of land?	☒	☐
3. Will the proposed action impair the character or quality of the existing community?	☒	☐
4. Will the proposed action have an impact on the environmental characteristics that caused the establishment of a Critical Environmental Area (CEA)?	☒	☐
5. Will the proposed action result in an adverse change in the existing level of traffic or affect existing infrastructure for mass transit, biking or walkway?	☒	☐
6. Will the proposed action cause an increase in the use of energy and it fails to incorporate reasonably available energy conservation or renewable energy opportunities?	☒	☐
7. Will the proposed action impact existing: a. public / private water supplies?	☒	☐
b. public / private wastewater treatment utilities?	☒	☐
8. Will the proposed action impair the character or quality of important historic, archaeological, architectural or aesthetic resources?	☒	☐
9. Will the proposed action result in an adverse change to natural resources (e.g., wetlands, waterbodies, groundwater, air quality, flora and fauna)?	☒	☐
10. Will the proposed action result in an increase in the potential for erosion, flooding or drainage problems?	☒	☐
11. Will the proposed action create a hazard to environmental resources or human health?	☒	☐

§ 133-1 Enumeration of fees.

Code Section	Type of Fee	Amount
§ 331-27.1	Waterfront Access	\$10,000/residential unit* Unless established elsewhere in Chapter 331 on a site-specific basis.

§ 331-27.1 Waterfront Access

Development built in accordance with Article XXII Downtown Overlay Zones, the R1-WF-10 One-Family Waterfront Residence District, and on the seaward side of Pelham Road from Water Street to the boundary with the Village of Pelham Manor, shall provide waterfront public access or scenic view public access as set forth in their respective sections of the code and/or comply with the fee requirements set forth set forth in their respective sections of the code and/or in Chapter 133 Fees.

City of New Rochelle
Development

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Adam Salgado, Commissioner of Development
DATE: October 18, 2022
SUBJECT: DIRECTING PUBLIC HEARING RE: PROPOSED AMENDMENT TO CHAPTER 331,SECTION 331-27.1, ZONING CODE, RE: WATERFRONT ACCESS - Resolution scheduling a public hearing relative to the proposed ordinance adding Section 331-27.1, Waterfront Access, and amending Section 133-1, Enumeration of Fees, of Chapter 133, Fees, of the Code of the City of New Rochelle.

Resolution scheduling a public hearing relative to the proposed ordinance adding Section 331-27.1, Waterfront Access, and amending Section 133-1, Enumeration of Fees, of Chapter 133, Fees, of the Code of the City of New Rochelle.

LEGISLATION

RESOLUTION SCHEDULING A PUBLIC HEARING RELATIVE TO THE PROPOSED ORDINANCE ADDING SECTION 331-27.1, WATERFRONT ACCESS, AND AMENDING SECTION 133-1, ENUMERATION OF FEES, OF CHAPTER 133, FEES, OF THE CODE OF THE CITY OF NEW ROCHELLE.

BE IT RESOLVED by the City Council of the City of New Rochelle:

This Council shall hold a public hearing on November 7, 2022 at 7:00 p.m. in the Council Chambers, 515 North Avenue, New Rochelle, New York, on the proposed amendment to Chapter 331, Zoning, of the Code of the City of New Rochelle:

ORDINANCE ADDING SECTION 331-27.1, WATERFRONT ACCESS, AND AMENDING SECTION 133-1, ENUMERATION OF FEES, OF CHAPTER 133, FEES, OF THE CODE OF THE CITY OF NEW ROCHELLE

and, be it further

RESOLVED, that the proposed amendments are hereby referred to the New Rochelle Planning Board and Westchester County Planning Department for their review and recommendation; and be it further

RESOLVED, that the City Clerk give due notice of said public hearing.

City of New Rochelle
City Manager

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Charles Strome III, City Manager
DATE: October 18, 2022
SUBJECT: AMEND CONTRACT WITH NY LANDSCAPE LIGHTING RE: HOLIDAY LIGHTS PROGRAM & AMEND 180 OF 2021 Ordinance amending the contract with New York Landscape Lighting relative to the City's Holiday Lights Program and amending Ordinance No. 180 of 2021, the budget of the City of New Rochelle for 2022.

To accommodate increased interest from downtown developers in the City of New Rochelle and New Rochelle BID's new Holiday Lighting program, we recommend that the City's contract with New York Landscape Lighting be expanded to include the purchase of 30 more units of light pole décor. The cost will be covered by funds from the New Rochelle Downtown BID which have been collected from Developers' contributions to this year's holiday lights initiative.

Section _____, Ordinance No. 180 of 2021, the budget of the City of New Rochelle for 2022, is hereby amended as follows:

Increase Appropriations:

702-41700-2551 Cultural/Programs- Holiday Lights
\$36,150

Increase Revenue:

7020-2705 Contributions- New Rochelle BID
\$36,150

LEGISLATION

ORDINANCE AMENDING THE CONTRACT WITH NEW YORK LANDSCAPE LIGHTING RELATIVE TO THE CITY'S HOLIDAY LIGHTS PROGRAM AND AMENDING ORDINANCE NO. 180 OF 2021, THE BUDGET OF THE CITY OF NEW ROCHELLE FOR 2022.

WHEREAS, to accommodate increased interest from downtown developers in the City of New Rochelle and New Rochelle BID's new Holiday Lighting program, staff has recommended that the City's contract with New York Landscape Lighting be expanded to include the purchase of 30 more units of light pole décor; and

WHEREAS, the cost shall be covered by funds from the New Rochelle Downtown BID, which have been collected from developers' contributions to this year's holiday lights initiative; now, therefore

BE IT ORDAINED by the City of New Rochelle:

Section 1. The amendment of the contract with New York Landscape Lighting in the amount of \$36,150 is hereby authorized relative to the City's Holiday Lights program.

Section 2. Ordinance No. 180 of 2021, the Budget of the City of New Rochelle for 2022, is hereby amended as follows:

Increase Appropriations:

7020-41700-2551	Cultural/Programs - Holiday Lights	\$36,150
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Increase Revenue:

7020-2705	Contributions - New Rochelle BID	\$36,150
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City of New Rochelle
City Manager

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Charles Strome III, City Manager
DATE: October 18, 2022
SUBJECT: COMMERCIAL VEHICLES PARKED IN RESIDENTIAL AREAS -
Requested by Council Member Albert A. Tarantino, Jr.

DISCUSSION ITEM